City of Duvall
Small Town. Real Life.

CITY COUNCIL MEETING AGENDA

September 7, 2021 7:00 PM

Virtual Only

Due to current public health concerns and associated orders – **this is a Virtual Meeting** – All City Councilmembers and Staff will attend virtually via Zoom. Members of the public are welcome to dial in or watch the meeting. **See page 3 for additional information**.

CITY COUNCIL COMMITTEE OF THE WHOLE: 5:30 PM

I. Good of the Order

II. Items

1. Personnel Manual – Lexipol
2. Toll/Walden – Phase 3 Final Plat update
3. Riverview School District Capital Facilities Plan

Written Reports

- July 2021 Financial Report
- Investment Plan Overview

Call to Order

Flag Salute

Roll Call

I. Additions or Corrections to the Agenda:

II. Adoption of the Council Agenda:

III. Consent Agenda:

Items listed below will be enacted by one motion. If separate discussion is desired on an item, that item may be removed from the Consent Agenda and placed on the regular Agenda at the request of a Councilmember.

1. Committee of the Whole Minutes and Council Minutes for August 17, 2021;
2. Payroll for August 16-31 in the amount of $_____ (to be provided)
3. Claims in the amount of $_____ (to be provided)
4. (AB21-85a) Resolution reimplementing a fee schedule for Big Rock Ballfields

IV. Comments from the Audience:

The City strongly encourages any public comments to be submitted in writing. You may submit the comments by 4:00 p.m. on September 7th Jodi Wycoff, City Clerk, by mail to: PO Box 1300, Duvall WA 98019; email to: jodi.wycoff@duvallwa.gov (subject line: Public Comment for September 7, 2021 Council Meeting) or dropped in City Hall drop box at 15535 Main St NE.

V. Scheduled Items:

1. Mayor's Report

2. Council Reports

3. Council Committee Reports
   a. Finance & Administration – *Chair Remington*
   b. Land Use – *Chair Hogg*
   c. Public Safety – *Chair Brudnicki*
   d. Public Works – *Chair McHenry*
   e. Ad-Hoc Committees
      i. Council Procedures Update / Code of Conduct – *Chair Hogg*
      ii. Human Services Grant Policy – *Chair McHenry*

4. Administration Report – ***R. Cotton***
   a. City Administrator Recruitment Update
   b. Council Retreat Agenda Update

VI. Presentation: *None*

VII. Public Hearing: *None*

VIII. New Business:

1. (AB21-88a) Interlocal Agreement - Riverview School District - Part-time School Resource Officer (5 minutes)
   discussion/decision – M. DeBock, Police

2. (AB21-89a) Ordinance - Police Department Non-represented pay scale (10 minutes)
   discussion/decision – M. DeBock, Police

3. (AB21-90a) Resolution – Extending Emergency Sick Leave policy (5 minutes)
   discussion/decision – S. Leniszewski, Administration

4. (AB21-91a) Contract Amendment – Summit Law (10 minutes)
   discussion/decision – D. Mason, Finance

IX. Unfinished Business:

1. (AB21-78c) Ordinance Amending/Creating Administrative Leave Policy (10 minutes)
   discussion/decision - R. Cotton, Administration

X. Executive Session: Qualifications of an applicant for public employment – 20 Minutes
RCW 42.30.110 (1) (g)

XI. Adjournment

Zoom Webinar Information

When: **Sep 7, 2021 07:00 PM Pacific Time** (US and Canada)

Topic: **Duvall City Council Meeting - September 7, 2021**

Please click the link below to join the webinar:
https://us06web.zoom.us/j/83225246677

Or One tap mobile :
US: +12532158782,,83225246677# or +16699006833,,83225246677#

Or Telephone:
Dial(for higher quality, dial a number based on your current location):
US: +**1 253 215 8782** or +1 669 900 6833 or +1 346 248 7799 or +1 929 436 2866 or +1 301 715 8592 or +1 312 626 6799

Webinar ID: 832 2524 6677

International numbers available: https://us06web.zoom.us/u/kz20mmRtG

CITY OF DUVALL
CITY COUNCIL
DRAFT COMMITTEE OF THE WHOLE MINUTES
August 17, 2021 – 5:30 p.m.
Virtual Only Meeting via Zoom

Due to public health emergency, this meeting was held remotely. All Councilmembers and staff attended via Zoom webinar.

Mayor Pro Tem Remington called the meeting to order at 5:30 p.m.

Council present: Amy McHenry, Michelle Hogg, Mike Remington, Jennifer Knaplund, Rick Shaffer, Dianne Brudnicki, Dorothy Lengyel

Staff present: Ryan Cotton, Lara Thomas, Dana Mason, Michael DeBock, Jodi Wycoff

I. Good of the Order

There were no items for good of the order.

II. Items:

1. Seattle Art Project – 20th Anniversary of 9/11

Councilmember Brudnicki gave a presentation about the history of the Seattle Art Project, which began in the weeks after 9/11 and delivers messages of hope and resilience through art to survivors, first responders and families of victims of 9/11. Stephanie Landau and Mary Fetchet of VOICES Center for Resilience, spoke about their organization, it's mission and the Seattle Art Project. King County Councilmember Lambert and Representative Goodman thanked Councilmember Brudnicki for her efforts with Seattle Art Project.

2. Financial Planning Process

Ryan Cotton, Interim City Administrator, gave an update on the Request for Proposals (RFP) that was recently issued for an Independent Financial Advisor to conduct a ten-year financial plan. Mr. Cotton reviewed the timeline for selection and contract approval process and answered questions from Council.

3. Personnel Manual Update Process

Ryan Cotton, Interim City Administrator, gave an update on the Request for Proposals (RFP) that was recently issued for General Staff Personnel Manual and On-Going Training and Updating Services. Mr. Cotton explained that only one response was received by Lexipol. After discussion, there was consensus to request a presentation from and discussion with Lexipol at an upcoming meeting.

4. Council Retreat

Due to time constraints, this item was discussed under Administration Update on the regular Council agenda.

III. Adjournment

The Committee of the Whole adjourned at 6:54 p.m.

Written Reports – *The following written reports were distributed in the Committee of the Whole packet:*

- City Administrator Recruitment Update
- Second Quarter 2021 Financial Report

ATTEST:

Michael Remington, Mayor Pro Tem

Jodi Wycoff, City Clerk

CITY OF DUVALL
DRAFT COUNCIL MEETING MINUTES
August 17, 2021
7:00 P.M. – Virtual Meeting via Zoom

Due to public health emergency, this meeting was held remotely. All Councilmembers and staff attended via Zoom webinar.

The City Council Meeting was called to order by Mayor Ockerlander at 7:04 P.M.

Roll Call

Council Present: Amy McHenry, Mike Remington, Jennifer Knaplund, Dianne Brudnicki, Michelle Hogg, Rick Shaffer, Dorothy Lengyel

Staff Present: Ryan Cotton, Lara Thomas, Michael DeBock, Steve Leniszewski, Dana Mason, Jodi Wycoff, City Attorney Daniel P. Kenny

I. Additions or Corrections to the Agenda:

Under Consent Agenda add: Payroll for August 5, 2021 in the amount of $303,750.08; and Claims for August 2, 2021 through August 17, 2021 in the amount of $825,820.57; move New Business AB21-82a, AB21-83a and AB21-84a and Unfinished Business AB21-80b to just after approval of consent agenda; add a 20 minute Executive Session regarding Legal Risk of Current or Proposed Action pursuant to RCW 42.30.110(1)(i) and move King County Fire District 45 scheduled report to occur prior to comments from the audience; and under New Business, add AB21-87a Resolution mandating COVID-19 vaccination as a condition of employment.

II. Adoption of Council Agenda:

It was moved and seconded (McHenry-Hogg) to approve the 08/17/21 Council Agenda.
The motion carried (7 ayes).

III. Approval of Consent Agenda:

It was moved and seconded (Hogg-McHenry) to approve the consent agenda which includes approving the Committee of the Whole and City Council meeting minutes of 07/20/21; Payroll for 08/05/21 Checks #52044-52045 and #52046-52053 in the amount of $303,750.08 including EFTs in the amount of $225,641.47;and Claims for 08/02/21 through 08/17/21 Checks #52031-52043 and #52054 in the amount of $825,820.57 including EFTs in the amount of $8,067.76.
The motion carried (7 ayes).

IV. New Business:

1. **(AB21-82a) Ordinance – Amend Duvall Municipal Code 2.08 "Municipal Court"**
2. **(AB21-83a) Interlocal Agreement - City of Issaquah Municipal Court Services**

It was moved and seconded (Remington-McHenry) to suspend Council Procedures in Section 5.6 requiring additional review and finalize AB21-82a and AB21-83a at this meeting.
The motion carried (7 ayes).

It was moved and seconded (Shaffer-McHenry) to adopt Ordinance #1284 amending Duvall Municipal Code Chapter 2.08 - Municipal Court to vest jurisdiction for municipal traffic and criminal violations in the City of Issaquah Municipal Court, transferring jurisdiction of pending cases to the City of Issaquah Municipal Court, and reserving conditional authority to the Duvall Municipal Court; providing for severability; and establishing an effective date; and to authorize

the Mayor to sign Interlocal Agreement (ILA) with the City of Issaquah for municipal court services and facilities. The motion carried (7 ayes).

3. (AB21-84a) Interlocal Agreement Amendment – South Correctional Entity (SCORE) – Inmate Housing Services

It was moved and seconded (Lengyel-Shaffer) to suspend Council Procedures in Section 5.6 requiring additional review and finalize this item at this meeting. The motion carried (7 ayes).

It was moved and seconded (Lengyel-Shaffer) to authorize the Mayor to sign an Amendment to Original Agreement for Inmate Housing with SCORE Jail. The motion carried (7 ayes).

V. Unfinished Business:

1. (AB21-80b) Police Department Renovation Scope

It was moved and seconded (Shaffer-Remington) to suspend Council Procedures in Section 5.6 requiring additional review and finalize this item at this meeting. The motion carried (7 ayes).

It was moved and seconded (Shaffer-Brudnicki) to approve additional budget appropriations through an adjustment / amendment for the Police Station Renovation projects that combine the $104,000 Main Street bond proceeds approved in the 2021/2022 Biennial Budget with the $104,860 State of Washington Department of Commerce Direct Program Grant S22138 for a total of $208,860. The motion carried (7 ayes).

VI. Executive Session:

Legal Risk of Current or Proposed Action -20 minutes - RCW 42.30.110(1)(i)

7:33 p.m. City Council went into a 20-minute Executive Session regarding legal risk of current or proposed action.

In attendance at Executive Session: Mayor Amy Ockerlander; Councilmembers Dianne Brudnicki, Rick Shaffer, Amy McHenry, Mike Remington, Michelle Hogg, Jennifer Knaplund, and Dorothy Lengyel, Interim City Administrator Ryan Cotton, Public Works Director Steve Leniszewski, and City Employment Attorney Dan Swedlow.

7:53 p.m. The Closed Session was extended in increments for a total of 27 minutes.

8:15 p.m. The regular Council meeting resumed.

VII. Scheduled Items:

1. King County Fire District 45 Update

David Burke, Fire Chief, gave an update on District business including call volumes, a new full time IT staff member, National Night Out, and deployment to assist with wildland fires. Chief Burke said that he is retiring at the end of August and thanked Council and the City for years of collaboration and friendships. Council wished Chief Burke well in his retirement.

VIII. Comments from the Audience:

Elizabeth Hill, representing Duvall Foundation for the Arts, expressed concerns about an anticipated notice from Westcott to DFA regarding removal of the old Thayer Barn and storage structure covering the barn from the Duvall Village commercial lot where the barn is currently located. Ms. Hill said DFA does not have the funding to move the barn and structure.

Ken Albinger, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Carol Kufeldt, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Roger Jones, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Jodi Wycoff, City Clerk, read aloud the following public comments received via email:

William Chappell, area resident, spoke in opposition of the COVID-19 vaccination mandate for City employees.

Zane Rutledge, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Jason Coon, area resident, spoke in opposition of the COVID-19 vaccination mandate for City employees.

Lori Bailey, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Jason Powell, Teamsters Business Agent, spoke in opposition of the COVID-19 vaccination mandate for City employees and the need for collective bargaining related to the policy.

Rose Hollis, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Haley Connor, area resident, spoke in opposition of the COVID-19 vaccination mandate for City employees.

Sara Baquero-Garcia, area resident, spoke in support of the COVID-19 vaccination mandate for City employees.

Marcie Decker, area resident, spoke in opposition of the COVID-19 vaccination mandate for City employees.

IX. Scheduled Items (continued):

2. Mayor's Report

Mayor Ockerlander thanked Officer Benjamin for organizing National Night Out and Kass Holdeman for organizing SummerStage.

3. Council Reports

Councilmember McHenry asked Council if there was interest in creating interim procedures for Council committees while the ad-hoc Procedures Committee continues work on final committee procedures. There was Council consensus to draft interim procedures for discussion at a future Committee of the Whole meeting. Councilmember McHenry gave an update on upcoming Council Chats.

Councilmember Hogg gave an update the recent King County Flood Control District Advisory Board meeting she attended.

4. Council Committee Reports

Finance and Administration: *No report*.

Land Use: *No report.*

Public Safety: Councilmember Brudnicki reviewed items discussed at the last meeting including recruitment, the interlocal agreements and code amendments on tonight's agenda, the take-home vehicle policy, legislative bills related to Police reform and an interlocal agreement with the School District for School Resource Officer services.

Public Works: *No report.*

Council Procedures Update/Code of Conduct Ad-Hoc: Councilmember Hogg said the committee updated minor language in Chapter 3 and has a special meeting this week to update additional chapters of the procedures.

City Council Human Services Grant Policy Ad-Hoc: *No report.*

5. Administration Update

Ryan Cotton, Interim City Administrator, gave an update on the City Administrator recruitment process including the selection schedule and reviewed the agenda for the upcoming Council Retreat.

Pursuant to Council Procedures, it was moved and seconded (Remington-Hogg) to extend the meeting beyond 9:30 p.m. The motion carried (7 ayes).

Lara Thomas, Deputy City Administrator/Community Development Director, gave an update on phase 1 of City facilities re-opening and said that, due to a potential exposure, City Hall and Police Department were re-closed to the public and staff is conducting meetings by appointment only outside. The Depot Building remains open to renters with modified hours. Ms. Thomas reviewed a letter received from Duvall Foundation of the Arts (DFA) stating they anticipate notice from Westcott to DFA regarding removal of the old Thayer Barn and storage structure covering the barn from the Duvall Village commercial lot where the barn is currently located. Ms. Thomas explained that DFA has given the City five days to notify them if the City is interested in moving the barn and storage structure for future use. Ms. Thomas and Elizabeth Hill, representing DFA, answered questions from Council.

X. <u>Presentation:</u> *None*

XI. <u>Public Hearing:</u> *None*

XII. <u>New Business (continued):</u>

4. (AB21-86a) Confirm Mayor Ockerlander's appointment of Anastasia Maier to the Duvall Cultural Commission Position 4, a vacant three-year term ending 12-31-22

It was moved and seconded (Hogg-Brudnicki) to confirm Mayor Ockerlander's appointment of Anastasia Maier to the Duvall Cultural Commission Position 4, a vacant three-year term ending 12-31-22. The motion carried (7 ayes).

5. (AB21-85a) Resolution reimplementing a fee schedule for Big Rock Ballfields
Steve Lenizewski, Public Works Director, introduced this item and answered questions from Council. This item will be on the next agenda for action.

6. (AB21-87a) Resolution requiring COVID-19 vaccination as a condition of employment
It was moved and seconded (Lengyel-Hogg) to suspend Council Procedures in Section 5.6 requiring additional review and finalize this item at this meeting. The motion carried (7 ayes).

It was moved and seconded (Lengyel-Shaffer) to approve Resolution #21-12 requiring COVID-19 vaccination as a condition of employment. The motion carried (6 ayes-Brudnicki, McHenry, Remington, Hogg, Lengyel, Shaffer; 1 nay-Knaplund).

XIII. Unfinished Business (continued):

2. (AB21-78b) Ordinance Amending/Creating Administrative Leave Policy
Ryan Cotton, Interim City Administrator, answered questions from Council. This item will be on the next agenda for further discussion and potential action.

3. (AB21-79b) Consultant Services Contract – 3rd Avenue Design
It was moved and seconded (McHenry-Brudnicki) to authorize the Mayor to execute a contract with KPG for design and engineering services for the 3rd Avenue NE Reconstruction Project. The motion carried (7 ayes).

XIV. Adjournment:

There being no further business and no objections, Mayor Ockerlander adjourned the meeting at 11:13 p.m.

Signed_____
Amy Ockerlander, Mayor

Attest_____
Jodi Wycoff, City Clerk

Agenda Bill

Duvall City Council

Meeting Date: 9/7/2021

AB# 21-85b

Subject Big Rock Ballfields Fee Adoption

Document Type Resolution

Department Public Works

Contact Steve Leniszewski, Public Works Director

Attorney Review Complete

Committee Recommendation N/A Choose an item.

Planning Commission Recommendation N/A

Handling Normal **Deadline Date** 12/31/2021

Needed from Council Action or Direction

Recommendation

Re-establish Resolution 20-32 effective January 1, 2022 for Big Rock Ballfield Rental Fees.

Motion – Approve Resolution reimplementing a fee schedule for Big Rock Ballfields.

Council Review History

- First review 08/17/2021

Attachments/References

- Resolution
- Staff Report "Updated" on Big Rock User rental fees COVID reduction
- Resolution 21.02 Big Rock Ballfield COVID fee reduction

Routing

Director: Steven Leniszewski, PE **Approved:** SJL 9/2/2021

Administrator: Amy Ockerlander, Mayor **Approved:** APO 9/2/2021

Budget Impacts Approved in Budget

Expenditure

			Budget		
Fund	**Account Description**	**Cost**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
		$	$	$	$
		$	$	$	$
		$	$	$	$

Revenue

			Budget		
Fund	**Account Description**	**Revenue**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
Big Rock Ball Field	Activity Fees	$	$125,000	$	$
		$	$	$	$
		$	$	$	$

Notes

In 2019, the last complete year of Big Rock Ball Field rentals, the City received $101,780 in activity fee revenue. In anticipation of limited field use due to the COVID-19 pandemic, only $25,000 in Big Rock Ball Field activity fee revenue was budgeted for 2021, and $100,000 in 2022.

As of June 30, 2021, the City had received $30,030 in Big Rock Ball Field activity fees.

Verified by Finance: DM 8/12/2021

Key Facts and Information Summary

Based on the fee reduction resolution 21-02 staff was to return to Council to discuss the reduction rates and field rentability at a future meeting. Staff is here to do so.

The staff report attached describes staff's recommendation which is to continue the reduced rates effective the remainder of 2021 but to re-establish the rates adopted in December of 2020 via resolution 20-32 beginning January 1, 2022.

CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 21-xx

A RESOLUTION OF THE CITY OF DUVALL, WASHINGTON, REIMPLEMENTING A FEE SCHEDULE FOR BIG ROCK BALLFIELDS.

WHEREAS, on March 23, 2020, Governor Jay Inslee issued Emergency Proclamation 20-25 ("Stay Home, Stay Healthy order") requiring all people in Washington State to immediately cease leaving their home or place of residence except to conduct or participate in essential activities and/or for employment in essential business services; and

WHEREAS, the Mayor and City Council worked to promote and encourage safe and healthy activities during the COVID-19 pandemic; and

WHEREAS, City Council temporarily reduced Big Rock Ballfield rental fees in response to the COVID-19 public health emergency for the calendar years 2021 and 2022; and

WHEREAS, Big Rock Ballfield use fees were determined, calculated, and authorized by Resolution 20-32 prior to a reduction.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

Section 1. Reestablish Big Rock User Fees: Ball field rental fees set by the City of Duvall hereby revert back to those authorized by Resolution 20-32 beginning January 1, 2022. Those fees are restated here:

Beginning January 1, 2022

	Resident Rate	Non-Resident Rate
Natural Grass (Youth/Adult)	$28.00	$38.00
Natural Grass (Youth/w prep)	$20.00	NA
Synthetic Turf (Youth/Adult)	$44.00	$54.00
Field Lighting	$17.00	$28.00

Section 2. Applicability of Rental Fees. The field rental rates identified in Section 1 shall be charged on the day the rented use occurs and not the date in which the field rental reservation is made.

Effective Date and Expiration. This Resolution shall take effect immediately after adoption by Council, unless otherwise amended or repealed by the City Council.

ADOPTED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE _____ DAY OF _____, 2021.

CITY OF DUVALL

_____
Mayor Amy Ockerlander

Approved as to form:

ATTEST/AUTHENTICATED:

_____
Daniel P. Kenny, City Attorney

_____
Jodi Wycoff, City Clerk

Passed by the City Council:
Resolution No.:

City of Duvall
Small Town. Real Life.

Department of Public Works

To: Mayor and City Council
From: Steve Leniszewski, PE, Public Works Director
Date: August 3, 2021
Subject: Big Rock Ballfield Rental Rates – Staff Report COVID-19 Rental fee reduction

08/03/2021- UPDATE

Late in 2020 staff and Council discussed the reduction of field rental rates at Big Rock Ballfield to encourage healthy activities for youth during the pandemic. Amongst the discussion a timeline was set for adopting the reduced rates for 2021 and 2022 with a review to be performed on the January – June usage to reaffirm rates prior to July for the remainder of 2021 and beyond.

Staff wish to discuss the fee opportunities with City Council. After review of the field rental activity forecast for 2022 based on discussion with users', staff are recommending keeping the rates the same for the rest of 2021 and going back to the "standard", non-reduced rates effective January 1, 2022. This is consistent with still being in the pandemic and allows for fee equity for all users through the calendar year of 2021. Fees for the year 2022 were previously set in the adopted legislation therefore would need to be adjusted to remove the pandemic discount.

11/17/2020

Staff has reviewed other rental rates in the greater Snoqualmie Valley, Redmond Ridge and Woodinville area. We are in search of like for like fields and amenities. Synthetic turf, natural grass, bleachers, lighting, restrooms and parking.



Currently we rent fields to user groups that support the City and its citizens. The majority of users are from the Duvall area and reside within the Riverview school district boundaries. Sports Groups that utilize our fields

include of baseball, cheer, cricket, football, lacrosse, soccer, softball, ultimate frisbee and general use. We serve groups at the Recreation level and up to and through Select and Premier programs. Our sports fields have become highly sought after by many users due to our location, the quality of our fields is very high and ease of reservation / contacting personnel.

OBJECTIVES:

The main objective is to have a rental rate that balances fair user fees while trying to offset and support operational costs as well as setting funds aside for programmatic synthetic turf replacement on a 10-12 year cycle. Council has also asked about a COVID fee reduction which we will add at the end of the discussion into a separate Resolution for Council consideration.

Table 1 – Existing rates

PARKS AND RECREATION FIELD RENTAL RATES - 2020	
Athletic Fields	**Duvall**
Natural Turf Fields	
Youth	$ 27.00
Adult	$ 27.00
Field Prep	$ -
Non-Resident Rate	$ 37.00
Synthetic Turf Sports Fields	
Youth	$ 43.00
Adult	$ 43.00
Non-Resident Rate	$ 53.00
Other	
Field Lights - Resident	$ 16.00
Field Lights - Non-Resident	$ 27.00

COMPARABLE FIELDS:

Staff recommends reviewing the 2-year rental rates and we prepare for a public hearing. After reviewing many local jurisdictions actions and rental rates staff believe we are very competitive and fair in our rental pricing. (See comparison rate table)

Jurisdictions compared to include:

1. City of Redmond – Perrigo Park (synthetic)
2. Fall City / Sno-Falls School District – Schools including Tolt Middle School (grass and synthetic)
3. King County – Redmond Ridge North (synthetic)
4. King County – Tolt Macdonald Park (grass)
5. Mount Si Parks District – grass
6. Riverview School District – unimproved school fields

7. Riverview School District – Cedarcrest High School field (synthetic)
8. Snoqualmie – grass & synthetic
9. Woodinville – Woodinville Sports Fields (synthetic)

Furthermore for 2021 we have confirmed that the Cities of Redmond, Snoqualmie and Woodinville are holding their rates flat for 2021 due to the pandemic. Additionally, I did not run across any other agencies expecting to provide a significant reduction for 2021 due to the pandemic.

COVID REDUCTION:
Based on recent Council direction and discussion staff is presenting a COVID-19 related fee reduction for the use and rental fees for the Big Rock Ballfields.

Staff recommends a 50% rental rate adjustment for locally managed youth sports groups to encourage recreation and exercise during the pandemic. Staff also recommends the reduction be assessed in six-month increments (ex. January -June, July- December) and end when the Mayor ends the declared Emergency. This would be in an accompanying agenda action item as to not disrupt the "regular" review timelines. This could conceivably go through the 2021 calendar year.

RECOMMENDATION:
Staff recommends holding the public hearing at the 12/1/2020 Council meeting and then having any necessary discussion on the fees and then deliberate. Staff also recommends holding the rates for 2021 the same as 2020 and furthermore proposes a $1/per our increase for each reservation item in the fee table for 2022. The $1 per item creates a variable percentage increase per item and as this is a manual payment system eliminates or helps reduce mathematical errors.

Alternative fee for Little League:
Staff has considered a different rate for Field #3 and rental to Little League (SVNLL). SVNLL has a storage container and equipment to prepare a field for a game or practice which they routinely do. They have a drag mat, quad, rakes, lining chalk, etc. They have asked for a rental reduction for the "service" they provide as they also put the field to bed after last use. The city can evaluate this weekly and determine if they should get the lower fee or be assessed the regular fee, depending on field preparation and care they've provided.
This fee adjustment can be eliminated in the future should city staffing be able to more consistently be able to mange the fields for users.

There are no setup offsets for the synthetic fields or users without equipment on site.

Table 2 – Proposed rates - 2021

PARKS AND RECREATION FIELD RENTAL RATES - 2021 -COVID-19 REDUCTION RATES-		
Athletic Fields	**Duvall**	**50% Reduction**
Natural Turf Field- Fields #3		
Youth	$ 27.00	$ 13.50
Youth - w/ Field Prep-Care	$ 20.00	$ 10.00
Adult	$ 27.00	$ 13.50
Field Prep	$ -	
Non-Resident Rate	$ 37.00	$ 18.50
Synthetic Turf Sports Fields - #1 & 2		
Youth	$ 43.00	$ 21.50
Adult	$ 43.00	$ 21.50
Non-Resident Rate	$ 53.00	$ 26.50
Other		
Field Lights - Resident	$ 16.00	$ 8.00
Field Lights - Non-Resident	$ 27.00	$ 13.50

Table 3 – Proposed rates – 2022

PARKS AND RECREATION FIELD RENTAL RATES - 2022		
Athletic Fields	**Duvall**	**50% Reduction**
Natural Turf Field- Fields #3		
Youth	$ 28.00	$ 14.00
Youth - w/Field Prep-Care	$ 21.00	$ 10.50
Adult	$ 28.00	$ 14.00
Field Prep	$ -	
Non-Resident Rate	$ 38.00	$ 19.00
Synthetic Turf Sports Fields - #1 & 2		
Youth	$ 44.00	$ 22.00
Adult	$ 44.00	$ 22.00
Non-Resident Rate	$ 54.00	$ 27.00
Other		
Field Lights - Resident	$ 17.00	$ 8.50
Field Lights - Non-Resident	$ 28.00	$ 14.00

CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 21-02

A RESOLUTION OF THE CITY OF DUVALL, WASHINGTON, TEMPORARILY REDUCING BIG ROCK BALLFIELD RENTAL FEES IN RESPONSE TO THE COVID-19 PANDEMIC; AND ESTABLISHING AN EFFECTIVE DATE AND EXPIRATION.

WHEREAS, the World Health Organization has determined that a pandemic exists due to the global spread of a highly contagious virus commonly known as COVID-19; and

WHEREAS, a state of emergency has been declared by the federal, state, county and municipal governments in response to the pandemic; and

WHEREAS, on March 23, 2020, Governor Jay Inslee issued Emergency Proclamation 20-25 ("Stay Home, Stay Healthy order") requiring all people in Washington State to immediately cease leaving their home or place of residence except to conduct or participate in essential activities and/or for employment in essential business services; and

WHEREAS, the Mayor and City Council wishes to promote and encourage safe and healthy activities during the COVID-19 pandemic; and

WHEREAS, City Council wishes to temporarily reduce Big Rock Ballfield rental fees in response to the COVID-19 public health emergency; and

WHEREAS, the reduced rental fees will be reviewed by city staff in six (6) month increments; and

WHEREAS, Big Rock Ballfield use fees are determined, calculated, and authorized by Resolution 20-32.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

Section 1. Temporary Fee Reduction: Temporary ball field rental fees will be reduced to 50% to promote and encourage healthy activities and reduce the economic impact of enrollment reductions from the resulting impacts of the COVID-19 pandemic. The City of Duvall hereby adopts the following fee schedule for Big Rock Ballfields:

Beginning January 1, 2021

	Resident Rate	Non-Resident Rate
Natural Grass (Youth/Adult)	~~$27.00~~ $13.50	~~$37.00~~ $17.50
Natural Grass (Youth/w prep)	~~$20.00~~ $10.00	NA
Synthetic Turf (Youth/Adult)	~~$43.00~~ $21.50	~~$53.00~~ $26.50
Field Lighting	~~$16.00~~ $8.00	~~$27.00~~ $13.50

Beginning January 1, 2022

	Resident Rate	Non-Resident Rate
Natural Grass (Youth/Adult)	~~$28.00~~ $14.00	~~$38.00~~ $19.00
Natural Grass (Youth/w prep)	~~$20.00~~ $10.00	NA
Synthetic Turf (Youth/Adult)	~~$44.00~~ $22.00	~~$54.00~~ $27.00
Field Lighting	~~$17.00~~ $8.50	~~$28.00~~ $14.00

Section 2. Applicability of Reduced Rental Fees. The reduced field rental rates identified in Section 1 shall be charged on the day the rented use occurs and not the date in which the field rental reservation is made.

Section 3. Further Fee Review and Participation in Review. The City will review the reduced field rental rates identified in Section 1 before the July-December period in an effort to provide all interested parties sufficient advanced notice of such fees for planning purposes. The City envisions considering and setting the July-December field rental fees at a City Council meeting in April or May 2021. Interested individuals and parties are invited to provide public comment on the field rental rates for the July-December period at the meeting where the City Council reviews such rates. Everyone, including organized sports groups, which rely on advanced notice of field rental fees, will know the field rental fees which shall govern the July-December period by the end of May 2021.

Effective Date and Expiration. This Resolution shall take effect immediately after adoption by Council, unless otherwise amended or repealed by the City Council.

ADOPTED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 5th DAY OF January, 2021.

CITY OF DUVALL

Amy Ockerlander

Mayor Amy Ockerlander

Approved as to form:

Daniel P. Kenny

Daniel P. Kenny, City Attorney

ATTEST/AUTHENTICATED:

Jodi Wycoff

Jodi Wycoff, City Clerk

Agenda Bill

AB# 21-88a

Duvall City Council

Meeting Date: 9/7/2021

Subject Interlocal Agreement between the City and Riverview School District for a Police Liaison Officer at Cherry Valley Elementary and Eagle Rock Multi-age Facilities for school year 2021-2022.

Document Type Contract

Department Police

Contact Michael DeBock, Police Chief

Attorney Review Complete

Committee Recommendation Public Safety Yes

Planning Commission Recommendation N/A

Handling Expedite **Deadline Date** 9/21/2021

Needed from Council Action or Direction

Recommendation

Authorize the Mayor to sign Interlocal Agreement for law enforcement services between the City of Duvall and Riverview School District for 2021-2022.

Council Review History

- Public Safety Committee Discussion and Review on 7/27/21 and 8/31/21

Attachments/References

- Interlocal Agreement

Routing

Director: Michael DeBock, Police Chief **Approved:** MRD 8/13/2021

Administrator: **Approved:** Initials Date

Budget Impacts Approved in Budget

Expenditure

			Budget		
Fund	**Account Description**	**Estimated Cost**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
General Fund - Police	Police Salaries & Benefits	$40,000	$3,502,000	$0	$0
			$0	$0	$0

Revenue

			Budget		
Fund	**Account Description**	**Revenue**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
General Fund	School Resource Officer Services	$40,000	$80,000	$0	$0
		$0	$0	$0	$0

Notes

This agreement is negotiated on an annual basis. $40,000 per year in revenue is included in the 2021/2022 Biennial Budget. Part-time School Resource Officer duties are covered by Police Officers on patrol, so the expense is part of budgeted Police Department salaries and benefits.

Verified by Finance: DM 9/1/2021

Key Facts and Information Summary

The purpose of this Agreement is to provide the Riverview School District (RSD) with a consistent presence from Duvall law enforcement, to act as a liaison between Duvall and the RSD, and between Duvall and the students of RSD, and to provide a safe environment for students and staff, while attending and or working on RSD grounds. Additionally, the police liaison shall provide educational opportunities including, but not limited; drug, alcohol, peer pressure and bullying education. This agreement accounts for compensation for after-hours event work for Cedarcrest High School, to include, but not limited to; sporting events, school dances and graduation, where Cedarcrest Administration requests the presence of police officers.

When school is in session and in person, the police liaison will provide a consistent presence to the RSD up to 20 hours per week, at the discretion of the RSD.

The annual school year for the RSD begins in September and ends in June of the following year. Duvall will provide a Police Officer, to the RSD on a consistent basis up to (4) four hours per day, during each day that school is in session, not to exceed $40,000 during the 2021-2022 school year.

INTERLOCAL AGREEMENT FOR LAW ENFORCEMENT SERVICES
BETWEEN THE
CITY OF DUVALL AND THE RIVERVIEW SCHOOL DISTRICT

In consideration of the mutual covenants and promises set forth in this Agreement, the City of Duvall (hereafter referred to as "Duvall"), a municipal corporation of the State of Washington, and the Riverview School District (hereafter referred to as "RSD") of the State of Washington, County of King, do hereby agree as follows:

1. Purpose:

The purpose of this Agreement is to provide the RSD with a consistent presence from Duvall law enforcement, to act as a liaison between Duvall and the RSD, and between Duvall and the students of RSD, and to provide a safe environment for students and staff, while attending and or working on RSD grounds. Additionally, the police liaison shall provide educational opportunities including, but not limited; drug, alcohol, peer pressure and bullying education. Additionally, this agreement accounts for compensation for after-hours event work for Cedarcrest High School, to include, but not limited to; sporting events, school dances and graduation, where Cedarcrest Administration requests the presence of police officers.

2. Services:

The City of Duvall, through its Police Department, shall provide the RSD with the following services:

a. Provide a police officer, liaison, available to RSD, during the 2021-2022 school year beginning in September and ending in June.

b. When school is in session and in person, the police liaison will provide a consistent presence to the RSD up to 20 hours per week, at the discretion of the RSD.

c. As needed or required, the police liaison's presence will be primarily at Schools within the RSD, other than Cedarcrest High School, as Cedarcrest High School has a full-time School Resource Officer.

d. The police liaison officer will be available to attend and participate as needed, with classroom presentations and school assemblies.

e. The police liaison will familiarize him/herself with the policies of the RSD, governing contraband, fighting, bullying, alcohol, theft, etc., as well as the penalties for each, as outlined in the RSD operating procedures.

f. The police liaison will advise RSD staff of situations he/she may encounter that is in violation of any RSD policies or operating procedures.

g. Throughout the school year, and as requested by RSD, the police department will provide law enforcement services for Cedarcrest High School, for after-school activities. These services will be conducted by off-duty police officers, and they will be paid their regular overtime, hourly rate, for each hour worked. The city will pay the officer overtime during the City's regular pay periods, and submit invoices to RSD, for reimbursement.

3. Costs Associated with Agreement:

a. The annual school year for the RSD begins in September and ends in June of the following year. Duvall will provide a Police Officer, to the RSD on a consistent basis up to (4) four hours per day, during each day that school is in session. RSD agrees to pay the city $40,000.00 during the 2021-2022 school year, for these services.

b. Reimbursement of officer overtime costs for after-school events when RSD has requested police officer(s) to attend.

4. Duration and Termination of Agreement:

a. The period of the agreement shall be one school year commencing on September 1, 2021. This agreement may be terminated by either party, upon written notice to the non-terminating party by the terminating party, providing for (30) thirty days advance notice.

b. This agreement shall be re-negotiated, between Duvall and the RSD, on an annual basis, preferably in the months of June and July, as the RSD prepares for their upcoming school year.

5. Indemnification:

Each party to the Agreement agrees to defend, indemnify and hold harmless the other party and its officers, employees, agents and elected officials from and against any claim, damage, liability, judgment, cost, penalty, and attorney's fees on account of death or injury of any person and or on account of any property damage of any kind arising from or in any manner connected with the performance of this agreement provided by Duvall to the extent of each party's own negligence.

In executing this Agreement, the City of Duvall does not assume liability or responsibility for, or in any way release, the Riverview School District from any liability or responsibility which arises in whole or in part from the existence of effect of the RSD's policies, rules or regulations. If any cause, claim, suit, action or administrative proceeding is commenced in which the enforceability and or validity of any such policy, rule or regulation is at issue, RSD shall defend the same at its sole expense and, if judgment is entered or damages are awarded against the RSD, the RSD shall fully satisfy the same including all chargeable costs and reasonable attorney's fees.

In the event of a claim, loss or liability based upon the alleged concurrent or joint negligence or tortious wrongdoing of the parties, the parties shall bear their respective liability, including cost, in accordance with an assignment of their respective liability established in accordance with the laws of the State of Washington.

6. General Provisions:

a. This Agreement constitutes the entire agreement between the parties, and both parties acknowledge that there are no other agreements oral or otherwise that have not been fully set forth in the text of this agreement.

b. The parties agree that this Agreement cannot be amended or modified without the written concurrence of both parties.

c. If any provision or a portion of this Agreement is held to be unconstitutional, invalid or unenforceable, the City of Duvall shall have the right, at its option, to declare the Agreement void and enter into negotiations with the Riverview School District for execution of a new Agreement.

d. It is not intended that a separate legal entity be established to conduct this cooperative undertaking. The Riverview School District shall act as the administrator of this agreement.

e. No special budget or funds are anticipated, nor shall any be created. The parties are each responsible for their own finances in connection with this Agreement, and nothing in this Agreement shall be deemed or construed otherwise.

f. The parties do not intend to acquire, hold, or dispose of any real or personal property pursuant to this Agreement.

7. Notice:

Any notices required to be given by the City of Duvall, to the Riverview School District or the Riverview School District to the City of Duvall shall be delivered to the following parties at the following addresses:

City Clerk City of Duvall 15535 Main Street NE P.O. Box 1300 Duvall, WA 98019	Superintendent Riverview School District 15510 1ST Avenue NE P.O. Box 519 Duvall, WA 98019

Any notices may be either delivered personally to the address of the notice or may be deposited in the United States mail, postage prepaid, to the address set forth above. Any notice so posted in the United States mail shall be deemed received three (3) days after the mailing.

Dated this _____ day of _____, 2021.

City of Duvall	Riverview School District
_____	_____
Mayor: Amy Ockerlander	Superintendent: Dr. Anthony L. Smith
Attest/Authenticated:	Attest/Authenticated:
_____	_____
Jodi Wycoff, City Clerk	

Agenda Bill

AB# 21-89a

Duvall City Council

Meeting Date: 9/7/2021

Subject	Nonunion Police Officers Pay and Additional Compensation
Document Type	Ordinance
Department	Police
Contact	Michael DeBock
Attorney Review	Complete
Committee Recommendation	Public Safety Yes
Planning Commission Recommendation	N/A
Handling	Expedite **Deadline Date** 9/7/2021
Needed from Council	Action

Recommendation

Adopt Ordinance outlining non-union Police Sergeant and Police Lieutenant pay and additional compensation.

Motion: Adopt ordinance adopting a pay scale for nonunion Police Sergeants and nonunion Lieutenants; establishing additional benefits for nonunion Police Sergeants and nonunion Lieutenants; providing for severability and establishing an effective date.

and

Authorize the Mayor to negotiate a contract or contract amendment with the Lieutenant that is consistent with the compensation in the adopted Ordinance.

Staff requests decision at this meeting and request Council suspend Council Procedures in Section 5.6 requiring additional review and finalize this item at this meeting.

Council Review History

- Discussion under New Business 9/7/21

Attachments/References

- Draft Ordinance

Routing

Director: Michael DeBock, Police Chief **Approved:** MRD 8/13/2021

Administrator: Ryan Cotton, ICA **Approved:** Initials Date

Budget Impacts Budget Amendment Required

Expenditure

			Budget		
Fund	Account Description	Estimated Cost of Changes	2021/2022 Budget	Budget Amendment Needed	Amended 2021/2022 Budget
General Fund	Police Salaries and Benefits	$38,650	$4,074,000	$38,650	$4,112,650

Revenue

			Budget		
Fund	Account Description	Revenue	2021/2022 Budget	Budget Amendment Needed	Amended 2021/2022 Budget
		$	$	$	$
		$	$	$	$

Notes

Please see table in the "Key Facts and Information Summary" for detail on the estimated cost of changes shown in the Expenditure table above.

The estimated cost of changes above does not include a reduction for estimated savings in overtime costs.

Verified by Finance: DM 8/13/2021

Key Facts and Information Summary

Sergeants

City of Duvall Police Sergeants are non-represented employees. Per Ordinance 1180, adopted in February 2015, the pay scale for Sergeants starts at 7% more than the top step of the Police Officer. However, the Ordinance does not address additional compensation, such as overtime, longevity, and education pay. Instead, the City has relied on the past practice of providing additional compensation for Sergeants based on specific elements of the Police Union collective bargaining agreement. This included providing 120 hours of Kelly Time, since Sergeants work the same schedule as Police Officers- four 12 hours shifts on, four days off.

Lieutenant

Past practice has been to base the Lieutenants cost of living adjustment (COLA) on that of the Police Union. The City's Lieutenant has an employment contract with the City that provides for additional compensation which includes 120 hours of Administrative Time.

Ordinance

To discontinue the use of past practice to provide additional compensation for the City's non-represented police employees, staff has worked with legal counsel to draft the attached Ordinance. Council approval of this Ordinance will provide the following:

- Establish 2021 pay for non-represented Sergeants and the City's Lieutenant, who are ineligible for retroactive pay

- Establish a pay scale for the Lieutenant that is tied to Sergeant, and therefore, Police Officer pay, to mitigate compression
- Establish additional compensation for Sergeants and the criteria which must be met to receive the additional compensation, rather than relying on past practice
- Establish additional compensation for the Lieutenant and the criteria that must be met to receive the additional compensation, rather than having an employment contract
- Eliminates 120 hours of Kelly Time for the Sergeants and 120 hours Admin Time for the Lieutenant, increasing annual hours worked from 2080 to 2190

Budget Impact

Subject	Summary of Change	Budget Impact Summary
2.5% COLA	Increases the hourly wage of Sergeants and the Lieutenant by 2.5%.	An increase in salaries and benefits of approx. $5,700 in 2021, and $7,300 in 2022
Elimination of Kelly Time and Administrative Leave	Pays straight time for a 2190-hour work year rather than providing 120 hours of leave and paying for a 2080-hour work year.	The additional 110 hours a year in straight time increases salaries and benefits by approximately $5,000 in 2021 and $18,000 in 2022. In 2022, the City hopes to recoup most, if not all, of this cost with reductions in overtime.
Longevity	Provides for a 1% increase every five years after year five of service	Increase of approximately $2,650, primarily in 2022 when a Sergeant has been with the City for five years and receives the first 1% and the Lieutenant has been with the City for ten years and receives an additional 1%.
On-Call Pay	Adds compensation for on-call to the Lieutenants salary rather than having in as a separate pay type	Included in current budget
Monthly Education	Provides for a monthly incentive of $100 for an AA Degree and $225 for a BA/BS Degree for specific fields of study	Past practice, already in budget
Overtime	Paid at the rate of one and one half for each hour over scheduled shifts.	Past practice, already in budget
Holidays for Sergeants	Pays double time and half for scheduled hours worked on a holiday and triple time for unscheduled hours worked on a holiday. Provides for eight hours of regular pay for holidays not worked.	Past practice, already in budget
Floating Holidays - Sergeants	Provides two floating holidays that are equivalent in hours to a scheduled shift	Past practice, already in budget
Medical and Dental Benefits	Allows the same medical and dental benefits that are provided to Police Officers	Past practice, already in budget

CITY OF DUVALL
WASHINGTON
ORDINANCE NO. XX

AN ORDINANCE OF THE CITY OF DUVALL, WASHINGTON, ADOPTING A PAY SCALE FOR NONUNION POLICE SERGEANTS AND NONUNION LIEUTENANTS; ESTABLISHING ADDITIONAL BENEFITS FOR NONUNION POLICE SERGEANTS AND NONUNION LIEUTENANTS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, Ordinance 1180, effective March 1, 2015, adopted a pay scale for non-union Police Sergeants that was 7% above the rank of police officer; and

WHEREAS, the pay scale for the current non-represented Police Lieutenants was established by the Steven Sabourin Position Agreement dated December 14, 2017 and the Steven Sabourin Position Agreement Contract - Amendment #1 Police Lieutenant dated March 25, 2019 (collectively, "2019 Lieutenant Pay Scale"); and

WHEREAS, the pay scale for the current non-represented Patrol Sergeants was set forth in a Memo to the Finance Department from Chief Hert dated 03/28/2019 Re: Officer Cory Clark – Promotion and in a Memo to the Finance Department from Chief Hert dated 03/28/2019 Re: Officer Thomas Warwick – Promotion (collectively, "2019 Sergeant Pay Scale"); and

WHEREAS, Ordinance 1220, effective January 1, 2018, adopted a pay scale for City of Duvall non-union pay classifications and eliminated longevity pay for listed non-represented positions but did not refer to the Police Sergeant or Police Lieutenant positions, and did not include Police Sergeant or Police Lieutenant in Exhibit "A" or Exhibit "B" attached to Ordinance 1220; and

WHEREAS, because neither Police Sergeants nor Police Lieutenants were included in Ordinance 1220, the adopted pay scale did not alter the prior pay scales in place for Police Sergeants nor Police Lieutenants and the elimination of longevity pay in that ordinance did not cover Police Sergeants nor Police Lieutenants. The City has continued to provide, and will continue to provide, longevity pay to those non-represented positions unless altered by the City Council; and

WHEREAS, the City of Duvall 2021/2022 Biennial Budget included salaries for the non-represented Police Sergeants and non-represented Police Lieutenants at 2020 amounts and stated that their pay will be updated once bargaining is complete; and

WHEREAS, concurrent with the adoption of the 2021/2022 Biennial Budget, the City Council established the number and types of employee positions, wage and salary rates and ranges, and benefits for its employees effective January 1**,** 2021; and

WHEREAS, Ordinance 1278 effective May 23, 2021 established the pay scale for non-represented regular and hourly employees but did not include the non-represented Police Sergeants and non-represented Police Lieutenants because their pay is established, in part, based on the results of bargaining for the represented Police Officers; and

WHEREAS, now that bargaining is complete, the City Council wishes to establish the pay scale for Police Sergeants and Police Lieutenants and make that pay scale applicable to the beginning of the calendar year; and

WHEREAS, the City Council must authorize changes to established positions, pay ranges, and benefits on an annual basis; and

WHEREAS, the City Council wishes to continue longevity pay and additional benefits for the Police Sergeant and Police Lieutenant positions in order to remain competitive in the market and retain the historical knowledge and other benefits associated with the continued employment of a long-term employee; and

WHEREAS, the Police Lieutenant and Police Sergeants have relied on the Sergeant Pay Scale and the Lieutenant Pay Scale and on the continuing receipt of additional benefits consistent with the City's longstanding practice for those positions, and it would be injurious to the incumbents to alter the pay scale structure or benefits or remove the longevity pay; and

WHEREAS, the continuation of the longevity pay to the Police Lieutenant and to eligible Police Sergeants through 2021 and until such pay is removed by the City Council is necessary to prevent a manifest injustice, and will not impair government;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Adoption of Pay Scales for Non-Represented Police Officers. The 2021 pay scales for non-represented police officers are adopted as set forth in **Attachment A**. This pay scale is in addition to that which is adopted through Ordinance 1278.

Section 2. Adoption of Additional Benefits for Non-Represented Police Officers.

Additional benefits applicable to non-represented police officers are adopted as set forth in **Attachment B**. Such additional benefits are applicable to the positions identified in Attachment B and include longevity pay, education incentives, field officer training compensation, and overtime.

Section 3. Applicability.

The pay scales for non-represented police officers contained in Attachment A and the additional benefits contained in Attachment B are applicable as of January 1, 2021.

Section 4. Severability. If any section, sentence, clause, or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause or phrase of this ordinance.

Section 5. Effective Date. This Ordinance shall be published in the official newspaper of the City and shall take effect and be in full force five (5) calendar days after the date of publication.

ADOPTED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE _____ DAY OF _____, 2021.

Approved as to form:

_____
Daniel P. Kenny, City Attorney

CITY OF DUVALL

_____
Mayor Amy Ockerlander

ATTEST/AUTHENTICATED

_____
Jodi Wycoff, City Clerk

Passed by the City Council:
Ordinance No.:
Date of Publication:

ATTACHMENT A

2021 Pay Ranges for Non-Represented Police Lieutenants and Sergeants

The following pay scales for non-represented Police Officers are hereby adopted for the year 2021 and shall be paid in full for officers working the entire year.

For officers scheduled to work a 2,080-hour work year, the regular rate of pay shall be based on the following table:

Police Non-Represented -2080 Hours

Position	Step 1*	Step 2	Step 3	Step 4	Step 5	Step 6	Step 7
Sergeant			$92,491	$94,804	$97,174	$99,603	$102,093
Lieutenant			$113,890	$116,542	$119,259	$122,065	$124,914

For officers scheduled to work a 2,190-hour work year, the regular rate of pay shall be based on the following table:

Police Non-Represented - 2190 Hours

Position	Step 1*	Step 2	Step 3	Step 4	Step 5	Step 6	Step 7
Sergeant			$97,383	$99,817	$102,313	$104,871	$107,492
Lieutenant			$119,506	$122,299	$125,160	$128,114	$131,114

ATTACHMENT B

Additional Compensation

Sergeants and Lieutenants are entitled to the following additional compensation:

Longevity based on the following scale:

Years of Service	Percentage of Monthly Base Salary
5-9 years	1%
10-14 years	2%
15-19 years	3%
19+ years	4%

Monthly education incentives based on the following:

Degree	Monthly Incentive
AA Degree	$100
BA/BS Degree	$225

The degree must be in one of the following fields of study: Police Science, Criminal Justice, Political Science, Sociology, Community Studies, Public Administration, or Business Administration.

Lieutenants and Sergeants shall receive two (2) floating holidays that are equivalent in hours to two regularly scheduled shifts.

Training Compensation: Sergeants Only
Field Officer Training of $250 per month when training a new recruit. For other instruction, as assigned by the Police Chief or Lieutenant:

0 – 3 hours	$50
3 – 8 hours	$75
8 – 12 hours	$100

Overtime: Sergeants Only
The Lieutenant position is exempt from overtime pay. Sergeants shall be paid overtime at the rate of one- and one-half times their regular rate of pay for each hour worked over their scheduled shift.

Holiday Pay: Sergeants Only
Lieutenants shall be paid for holidays as stated in Duvall Municipal Code. Sergeants shall be paid at double time and a half (2 ½) times the regular rate of pay for work performed on a holiday. If the work performed on a holiday is unscheduled, they shall receive triple time (3) the regular rate of pay. If the holiday falls on a day off and is unworked, they shall receive an additional eight (8) hours of pay.

Medical and Dental Benefits: Lieutenants and Sergeants
Lieutenants and Sergeants are entitled to the same medical and dental benefits provided in the collective bargaining agreement with the police guild.

Agenda Bill

AB# 21-90a

Duvall City Council

Meeting Date: 9/7/2021

Subject	Resolution – Amend the expiration date of the City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy
Document Type	Resolution
Department	Administration
Contact	Amy Ockerlander, Mayor
Attorney Review	Complete

Planning Commission Recommendation N/A

Handling Expedite **Deadline Date** 9/7/2021

Needed from Council Action

Recommendation

Approve Resolution amending the expiration date of the City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy

Staff requests Council suspend Council Procedures in Section 5.6 requiring additional review and finalize this item at this meeting.

Council Review History

- First review

Attachments

- Resolution
- Policy

Routing

Director: Steven Leniszewski, PE **Approved** SJL 9/01/2021

Administrator: Amy Ockerlander, Mayor **Approved:** APO 9/01/2021

Budget Impacts Potential OT for coverage

Expenditure

			Budget		
Fund	**Account Description**	**Cost**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
		$	$	$0	$
		$	$	$0	$

Revenue

			Budget		
Fund	**Account Description**	**Revenue**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
		$	$	$	$
		$	$	$	$

Notes

63 hours of Emergency Sick Leave (ESL) was used by City employees from April 20, 2021 through the end of June, totaling $2,155. The City was able to recoup this cost through a 2nd quarter payroll tax reduction. 16 additional hours were paid out from July 1, 2021 through August 15, 2021, totaling $867. This amount, plus any associated benefits, will be requested as a 3rd quarter payroll tax deduction, along with additional ESL time paid out through September.

Verified by Finance: DM 9/1/2021

Key Facts and Information Summary

UPDATE

On April 6, 2021, City Council amended the previously approved the City of Duvall Families First Coronavirus Response Act (FFCRA) to extend the date of the policy through September 30, 2021, and to make it consistent with the American Rescue Plan Act of 2021 ("ARPA"). The pandemic is lingering on and is currently hitting the fourth wave of increasing cases due to the "Delta Variant". Staff recommend extending the policy once again through March 31, 2022. Emergency sick leave is an eligible use of (American Rescue Plan Act) ARPA funds or the City may continue to take the payroll tax credit to recoup costs, if available.

The original policy was required by federal law and included up to 80 hours of Emergency Sick Leave for employees who became ill or had to be isolated due to the COVID-19 virus. It also allowed up to 12 weeks of Public Health Emergency Leave to take care of a child if care was unavailable due to COVID-19 related closures.

PREVIOUS REPORT

The original policy expired on December 31, 2020. On February 2, 2021, Council voluntarily reinstated the unused hours from the Emergency Sick Leave portion of the policy. The reinstated policy expired March 31, 2021.

On March 11, 2021, Congress passed the American Rescue Plan Act (ARPA), which provides for voluntarily adopting temporary leave benefits, similar to those that were required with the initial passage of the FFCRA, in exchange for a payroll tax credit (it is not known at this time if governments will be eligible for the tax credit). As did the FFCRA, ARPA temporary leave benefits provide employees up to 80 hours of Emergency Sick Leave and up to 12 weeks of Emergency Family and Medical Leave (EFML) for use if an employee or immediate family member becomes ill or must be isolated due to the COVID-19 virus. However, the ARPA provides a provision for those who miss work for reasons related to the vaccination and does not require using two weeks of either Emergency Sick Leave or other accrued leave prior to the use of EFML.

Emergency Sick Leave is capped at $511 daily with a maximum of $5,110 if used to cover leave for an employee's own health or quarantine, and at 2/3 of an employee's regular wage up to $200 a day with a maximum of $2,000 if used to care for an immediate family member.

EMFL is also capped at 2/3 of an employee's regular wage up to $200 a day with a maximum of $12,000 and may be used for the COVID-19 related reasons for the employee or an immediate family member. Unlike FMLA, which requires employment for 12 months, or 1250 hours, worked in the prior year, employees who have worked at least 30 days are eligible for EMPL.

CITY OF DUVALL
WASHINGTON
RESOLUTION NO. 21-

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, EXTENDING THE CITY OF DUVALL AMERICAN RESCUE PLAN ACT OF 2021 EMERGENCY LEAVE POLICY.

WHEREAS, on March 17, 2020, the City Council approved Resolution 20-04, adopting the City's Public Health Emergency and/or Pandemic Response and Recovery Policy and Procedures (the "Pandemic Policy"), outlining the City's personnel policies and other actions taken by the City to address the COVID-19 pandemic; and

WHEREAS, on March 18, 2020, Congress passed the Families First Coronavirus Response Act ("FFCRA") requiring certain employers to provide their employees with paid sick leave and expanded family and medical leave for specified reasons related to the COVID-19 virus; and

WHEREAS, on April 7, 2020, the City Council approved Resolution 20-05 adopting the City of Duvall Families First Coronavirus Response Act Policy to comply with the FFCRA; and

WHEREAS the expanded family and medical leave protections for specified reasons related to the COVID-19 virus required by the FFCRA and the City's policy expired December 31, 2020; and

WHEREAS, on February 2, 2021, the City Council approved Resolution 21-03 reinstating the unused portion of emergency sick leave, expiring, March 31, 2021; and

WHEREAS, on March 11, 2021, Congress passed the American Rescue Plan Act (ARPA) of 2021, which provides employers with the opportunity to voluntarily adopt temporary emergency leave benefits for certain absences related to the COVID-19 outbreak; and

WHEREAS, on April 6, 2021, the City Council approved Resolution 21-07 extending the City of Duvall Families First Coronavirus Response Act Policy to continue extending emergency leave benefits under the ARPA through September 30, 2021 in recognition of a continued public health state of emergency; and

WHEREAS, the SARS-CoV-2 Delta variant has become the dominant strain of the virus, infecting vaccinated and unvaccinated individuals with a high and fast transmission rate; and

WHEREAS, children under 12 years old are currently not eligible for the vaccine, impacting the families of City of Duvall employees; and

WHEREAS, as of August 11, 2021 the 7-day rolling average of COVID-19 infections in King County, Washington has reached 130.5 per 100,000 residents which is well into the "High Transmission" category as defined be Seattle-King County Public Health; and

WHEREAS, the daily testing rates are now above 600 new and probable per cases per day as of August 11, 2021; and

WHEREAS, the City desires to extend the deadline for using the temporary emergency leave benefits that are available under the City's existing ARPA Emergency Leave policy in order to ensure appropriate support for affected employees.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

Section 1. Extension of The City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy: The extension of The City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy ("Policy") is hereby adopted as set forth on the attached Exhibit "A".

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE _____ DAY OF _____, 2021.

CITY OF DUVALL

Approved as to form:

_____
Mayor Amy Ockerlander

_____
Daniel Kenny, City Attorney

ATTEST/AUTHENTICATED:

_____
Jodi Wycoff, City Clerk

Passed by the City Council:
Resolution No.:

EXHIBIT A

TITLE:	**City of Duvall American Rescue Plan of 2021 Emergency Leave Policy**
POLICY NUMBER:	**21-XX**
EFFECTIVE DATE:	Original policy: April 06, 2021; amendment: September ___, 2021
APPROVED BY:	City Council via Resolution 21-07; amendment via Resolution 21-XX
ATTORNEY REVIEW:	Karen Sutherland, Ogden Murphy Wallace, P.L.L.C.

PURPOSE

This policy originally provided temporary protected leave and paid leave benefits for certain absences relating to the COVID-19 outbreak in accordance with the American Rescue Plan Act of 2021 ("ARPA"). The benefits available under this policy were made available beginning on April 06, 2021 through September 30, 2021, the expiration date under ARPA for these benefits. By amendment, this policy is extended to remain effective through March 31, 2022. As amended, this policy will be administered the same way it was administered under the ARPA statute and any applicable federal regulations and guidance, except as indicated below.

SCOPE

This policy applies to all City of Duvall departments and employees.

POLICY

The ARPA provides for two categories of leave (collectively, "ARPA leave"). The first expands existing ("regular") FMLA coverage to provide up to 12 weeks of partially paid Emergency Family and Medical Leave ("EFML") for eligible employees forced to miss work due to various reasons related to the COVID-19 pandemic. The second provides up to 10 days of partially paid Emergency Sick Leave for various reasons related to the COVID-19 pandemic. EFML and Emergency Sick Leave are available even if employees previously used leave under the City's Families First Coronavirus Relief Act Leave Policy or the City's Reinstatement of Unused Emergency Sick Leave Benefits, which have expired and are replaced by this Policy. The amendment to this policy extends the deadline for eligible employees to use their existing ARPA

leave through March 31, 2022. The amendment to this policy does not reinstate any ARPA leave that has already been used.

EFML and/or Emergency Sick Leave are available if a City employee is unable to work, or telework, based on any of the following reasons:

1. The employee is subject to a federal, state, or local quarantine or isolation order related to COVID-19. This includes a shelter-in-place or stay-at-home order issued by federal, state or local government if the order precludes the employee from working; an employee who is able to telework or who is not covered by the order (e.g., those performing essential services as defined by the applicable order) would not eligible to take leave for this reason.
2. The employee has been advised by a health care provider to self-quarantine due to concerns related to COVID-19.
3. The employee is experiencing symptoms of COVID-19 and is seeking a medical diagnosis.
4. The employee is seeking or awaiting the results of a diagnostic test for, or a medical diagnosis of, COVID–19 and such employee has been exposed to COVID–19 or the employee's employer has requested such test or diagnosis.
5. The employee is obtaining immunization related to COVID–19 or recovering from any injury, disability, illness, or condition related to such immunization.
6. To care for an individual who is self-isolating for one of the reasons described in (1) or (2) above. The individual needing care must be the employee's immediate family member, a person who regularly resides in the employee's home, or a similar person with whom the employee has a relationship that creates an expectation that the employee would care for the person if he or she were quarantined or self-quarantined.
7. To care for the employee's child under age 18 due to closure of the child's school or unavailability of the child's childcare provider due to COVID-19 precautions. A "child" is defined the same as under the FMLA; *i.e.,* a biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis who is either under 18 years of age or is 18 years of age or older and "incapable of self-care because of a mental or physical disability" at the time leave is to commence.
8. The employee is experiencing any other substantially similar condition specified by the Secretary of Health and Human Services in consultation with the Secretary of the Treasury and the Secretary of Labor.

Details regarding each category of leave are provided in the sections below.

EMERGENCY FAMILY & MEDICAL LEAVE ("EFML")

Eligibility

Subject to certain exceptions described below, employees who have worked for the City for at least 30 days are eligible for EFML leave. An employee need not meet the eligibility requirements for regular FMLA (12 months of employment and 1250 hours worked in the prior year) to be eligible for EFML.

Leave Entitlement

An eligible employee may take up to 12 weeks of protected leave if the employee is unable to work, or telework, based on any of the reasons listed in this Policy. However, EFML may be taken intermittently only if approved by the City.

If an employee meets the eligibility requirements for regular FMLA (e.g., 12 months of employment and 1250 hours worked in the prior year), then EFML is part of their regular FMLA leave entitlement. Accordingly, if an employee has already used FMLA for other purposes during the FMLA leave year, the amount of available EFML will be reduced by the amount of FMLA leave already taken. EFML leave will be available through March 31, 2022.

Partial Pay Entitlement

The City will pay two-thirds of the employee's regular pay, up to a maximum of $200 per day or $12,000 in the aggregate. Pay is calculated based on the number of hours an employee would otherwise have been scheduled to work.

Notification; Verification

Employees who need to take EFML leave should notify the Finance Department as soon as practicable after the need for leave arises. An employee seeking EFML leave must provide the following:

1. The employee's name;
2. The date(s) for which leave is requested;
3. Qualifying reasons for the leave;
4. Where leave is taken due to a quarantine or isolation order, the name of the government entity issuing the order;
5. Where leave is taken due to the recommendation of a health care provider to self-quarantine, the name of the health care provider making the recommendation; or
6. Where leave is taken due to a school closure or unavailability of a childcare provider: (1) the name of the child(ren) being cared for; (2) the name of the school(s) or childcare provider(s) that has/have closed or become unavailable; and (3) a statement that no other suitable person is available to care for your child while EFML leave is being used.

7. Additional documentation may be required at the request of the City's Human Resources Department if rules, regulations, or guidance issued by Congress or a federal agency indicate that additional documentation is needed.
8. All existing certification requirements under the regular FMLA remain in effect if the employee is taking leave for one of the existing qualifying reasons under the regular FMLA.

Other

This policy will be administered consistent with the City's existing Family and Medical Leave (FMLA) policy, except as modified by the ARPA. However, the amendments to this policy only extend the deadlines for using ARPA leave. The other provisions of ARPA leave no longer apply after September 30, 2021 (e.g., extension of health insurance benefits, exceptions to the Fair Labor Standards Act, job protection, etc.). Employees who use ARPA leave after September 30, 2021 may be eligible for a continuation of group health insurance under COBRA; contact the City's Human Resources Department for details.

EMERGENCY SICK LEAVE

Eligibility

All employees of the City are eligible for up to 80 hours of Emergency Sick Leave. Emergency Sick Leave may be fully paid or partially paid, depending on the reason for taking leave (see below).

Covered Reasons for Using Emergency Sick Leave

Employees are entitled to use Emergency Sick Leave when they are unable to work, or telework, for any of the reasons listed in this Policy.

Paid Leave Entitlement

Full-time employees are entitled to up to 80 hours of Emergency Sick Leave. Part-time employees are entitled to Emergency Sick Leave equal to number of hours they typically work over a two-week period. Emergency Sick Leave will be available through March 31, 2022. Any Emergency Sick Leave available under this Policy is in addition to accrued leave to which an employee is already entitled under existing City policies or labor agreements. However, an employee cannot use Emergency Sick Leave and EFML at the same time and receive pay for both types of leave at the same time.

Reduced Benefit for Certain Leaves; Cap on Sick Leave Amount

Where Emergency Sick Leave is taken for reasons (1) through (5) above (which cover leave due to the employee's own health or quarantine), the paid sick leave benefit is equal to the employee's regular rate of pay for the missed work time, provided that Emergency Sick Leave is capped at $511 per day and $5,110 in the aggregate when leave is taken for these reasons.

Where leave is taken for reasons (6) through (8) above (to care for another, to care for a child due to a school closure or unavailability of childcare, or where the employee is experiencing a

substantially similar condition), the paid sick leave benefit is two-thirds of the employee's regular rate of pay, provided that Emergency Sick Leave is capped at $200 per day and $2,000 in the aggregate when leave is taken for one of these reasons.

Use of Paid Sick Leave; Sequencing with Other Leave; Intermittent Use

Employees may access Emergency Sick Leave for a covered reason before exhausting other accrued leaves.

If an employee is using Emergency Sick Leave intermittently due to a closure of a child's school or unavailability of the childcare provider, the employee may take leave intermittently only with the City's approval.

An employee may also use Emergency Sick Leave intermittently with City approval if unable to telework his/her normal schedule of hours due to a qualifying reason (for example, if an employee can telework in the morning, but needs to care for a child in the afternoon due to a school closure).

Per federal regulations, where an employee is not teleworking, intermittent use of Emergency Sick Leave is not permitted when leave is taken for reasons (1), (2), (3), (6), or (8) above. In such cases, Emergency Sick Leave must be taken in full-day increments and once leave is initiated for one of these reasons, the employee must continue to use Emergency Sick Leave until either (i) the full amount of Emergency Sick Leave has been used; or (ii) the employee no longer has a qualifying reason for taking Emergency Sick Leave. The Department of Labor has explained that this requirement is imposed because if an employee is actually or possibly sick with COVID-19, or is caring for someone who is sick or possibly sick with COVID-19, the intent of the law is to provide paid leave to prevent the spread of the virus.

Carryover; Termination of Benefit

The Emergency Sick Leave Benefit expires on March 31, 2022; any unused Emergency Sick Leave will not be carried over to the next calendar year or merged into other leave banks. Additionally, the entitlement to Emergency Sick Leave ceases beginning with the employee's next scheduled work shift immediately following the termination of the need for paid emergency sick leave. However, to the extent an employee subsequently needs additional time off for another covered reason prior to March 31, 2022, the employee may use any remaining Emergency Sick Leave available.

Notification

An employee who needs to take Emergency Sick Leave should notify the Finance Department as soon as practicable. After the first workday (or portion thereof) that an employee takes Emergency Sick Leave, the employee must follow the notice requirements required for use of regular sick leave.

EXHIBIT A

Verification

An employee requesting Emergency Sick Leave must: provide their name; specify the qualifying reason for requesting leave; state that the employee is unable to work or telework, for that specified reason; and provide the date(s) for which leave is requested. Depending on the type of leave taken, the Department of Labor requires that an employee provide the following additional information to substantiate the leave request:

- Where leave is taken due to a quarantine or isolation order, the name of the government entity issuing the order;
- Where leave is taken due to the recommendation of a health care provider to self-quarantine, the name of the health care provider making the recommendation; or
- Where leave is taken due to a school closure or unavailability of a childcare provider: (1) the name of the child(ren) being cared for; (2) the name of the school(s) or childcare provider(s) that has/have closed or become unavailable; and (3) a statement that no other suitable person is available to care for your child while Emergency Sick Leave is being used.
- Additional documentation may be required at the request of the City's Human Resources Department if rules, regulations, or guidance issued by Congress or a federal agency indicate that additional documentation is needed.
- All existing certification requirements under the regular FMLA remain in effect if the employee is taking leave for one of the existing qualifying reasons under the regular FMLA.

Agenda Bill

AB# 21-91a

Duvall City Council

Meeting Date: 9/7/2021

Subject Amend Contract with Summit Law

Document Type Contract

Department Administration

Contact Dana Mason, Finance Director

Attorney Review Under Review

Committee Recommendation N/A N/A

Planning Commission Recommendation N/A

Handling Expedite **Deadline Date** 9/7/2021

Needed from Council Action

Recommendation

Authorize Mayor to sign contract amendment #1 with Summit Law.

Council Review History

- Introduction/Discussion – September 7, 2021

Attachments/References

- Original Contract 2020-21
- Amendment #1

Routing

Director: Dana Mason, Finance Director **Approved:** DM 9/1/2021

Administrator: Admin Name **Approved:**

Budget Impacts Budget Amendment Required

Expenditure

			Budget		
Fund	**Account Description**	**Estimated Cost**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
General Fund	Legal Services	$0	$283,245	$26,175	$309,420
		$0	$0	$0	$0
		$0	$0	$0	$0

Revenue

			Budget		
Fund	**Account Description**	**Revenue**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
General Fund	City Assistance	$31,950	$0	$31,950	$31,950
		$0	$0	$0	$0

Notes

The 2021/2022 Biennial Budget includes $283,245 for legal expenditures. The amount was based on 2020 hours and did not include the $30,000 that was budgeted for labor negotiations in the 2019/2020 budget. $3,998 was spent on labor negotiations in 2020, $26,177 was spent in 2021.

The City recently received $31,950 in state allocations to help pay for police reform legislation. This will be used to cover some of the related legal costs.

Verified by Finance: DM 9/1/2021

The City entered into a contract with Summit Law in 2021 to assist with labor negotiations with a not to exceed amount of $15,000. Since that time, the City has utilized Summit Law's services to assist with a variety of other employment matters, including those pertaining to recent police reform legislation, and has exceeded the contract amount by $17,693.

Staff would like to continue using Summit Law for the majority of its employee-related legal services and is asking for a contract amendment to extend the agreement date to December 31, 2022, and for the services to be provided on an as-needed basis, without a not-to-exceed cap, as is common with many legal service agreements.

The City is in the process of implementing OpenGov, a financial software which will provide controls to prevent exceeding contract limits.

City of Duvall
Small Town. Real Life.

CONTRACT FOR PROFESSIONAL SERVICES
SUMMIT LAW GROUP
LABOR NEGOTITATIONS
#2020-21

THIS AGREEMENT is entered into between the City of Duvall, Washington, hereinafter referred to as "the City", and **SUMMIT LAW, 315 FIFTH AVENUE S -SUITE 1000, SEATTLE WA, 98014**, hereinafter referred to as "the Consultant", in consideration of the mutual benefits, terms, and conditions hereinafter specified.

1. **Project Designation.** The Consultant is retained by the City to perform DESCRIBE SERVICE.

2. **Scope of Services.** The Consultant agrees to perform the services, identified on Exhibit "A" attached hereto, including the provision of all labor, materials, equipment and supplies.

3. **Duration of Agreement; Time for Performance.** This Agreement shall be in full force and effect for a period commencing upon execution and ending December 31, 2021, unless sooner terminated under the provisions hereinafter specified. Work under this Agreement shall commence upon written notice by the City to the Consultant to proceed. The Consultant shall perform all services and provide all work product required pursuant to this Agreement no later than December 31, 2021 unless an extension of such time is granted in writing by the City.

4. **Payment.** The Consultant shall be paid by the City for completed work and for services rendered under this Agreement as follows:

   A. Payment for the work provided by the Consultant shall be made as provided in Exhibit "A" attached hereto, provided that the total amount of payment to the Consultant shall not exceed **$15,000.00 (Fifteen Thousand Dollars and no cents)** without express written modification of the Agreement signed by the City.

   B. The Consultant may submit vouchers to the City once per month during the progress of the work for partial payment for that portion of the project completed to date. Such vouchers will be checked by the City and, upon approval thereof, payment shall be made to the Consultant in the amount approved.

   C. Final payment of any balance due the Consultant of the total contract price earned will be made promptly upon its ascertainment and verification by the City after the completion of the work under this Agreement and its acceptance by the City.

   D. Payment as provided in this section shall be full compensation for work performed, services rendered, and for all materials, supplies, equipment and incidentals necessary to complete the work.

E. The Consultant's records and accounts pertaining to this Agreement are to be kept available for inspection by representatives of the City and the state of Washington for a period of seven (7) years after final payments. Copies shall be made available upon request.

5. **Compliance with Laws.** The Consultant shall, in performing the services contemplated by this Agreement, faithfully observe and comply with all federal, state, and local laws, ordinances and regulations, applicable to the services rendered under this Agreement.

6. **Indemnification.**

A. The Consultant will at all times indemnify, hold harmless and defend the City its elected officials, officers, employees, agents and representatives, from and against any and all lawsuits, damages, costs, charges, expenses, judgments and liabilities, including consultant's fees (including attorney's fees in establishing indemnification), collectively referred to herein as "losses" resulting from, arising out of, or related to one or more claims arising out of negligent acts, errors, or omissions of the Consultant in performance under this Agreement.

B. The City will at all times indemnify and hold harmless and defend the Consultant, its officers, employees, agents and representatives, from and against any and all lawsuits, damages, costs, charges, expenses, judgments and liabilities, including consultant's fees (including attorney's fees in establishing indemnification), and claims brought by third parties against the Consultant while acting in such capacity, collectively referred to herein as "losses" resulting from, arising out of, or related to one or more claims arising out of negligent acts, errors, or omissions of the City in performance under this Agreement.

7. **Insurance.** The Consultant shall procure and maintain for the duration of the Agreement, insurance against claims for injuries to persons or damage to property which may arise from or in connection with the performance of the work hereunder by the Consultant, its agents, representatives, or employees. Consultant's maintenance of insurance as required by the agreement shall not be construed to limit the liability of the Consultant to the coverage provided by such insurance, or otherwise limit the City's recourse to any remedy available at law or in equity.

A. **Minimum Amounts and Scope of Insurance.** Consultant shall obtain insurance of the types and with the limits described below:

1. Automobile Liability insurance with a minimum combined single limit for bodily injury and property damage of $1,000,000 per accident. Automobile Liability insurance shall cover all owned, non-owned, hired and leased vehicles. Coverage shall be written on Insurance Services Office (ISO) form CA 00 01 or a substitute form providing equivalent liability coverage. If necessary, the policy shall be endorsed to provide contractual liability coverage.

2. Commercial General Liability insurance with limits no less than $2,000,000 each occurrence, $2,000,000 general aggregate. Commercial General Liability insurance shall be written on ISO occurrence form CG 00 01 and shall cover liability arising from premises, operations, independent contractors and personal injury and advertising injury. The City shall be covered as an additional insured under the Consultant's Commercial General Liability insurance policy with respect to the work performed for the City.

3. Workers' Compensation coverage as required by the Industrial Insurance laws of the State of Washington.

4. Professional Liability with limits no less than $2,000,000 per claim and $2,000,000 policy aggregate limit. Professional Liability insurance shall be appropriate to the Consultant's profession.

B. **Other Insurance Provision.** The Consultant's Automobile Liability and Commercial General Liability insurance policies are to contain, or be endorsed to contain that they shall be primary insurance with respect to the City. Any Insurance, self-insurance, or insurance pool coverage maintained by the City shall be excess of the Consultant's insurance and shall not be contributed or combined with it.

C. **Acceptability of Insurers.** Insurance is to be placed with insurers with a current A.M. Best rating of not less than A:VII.

D. **Verification of Coverage.** Consultant shall furnish the City with original certificates and a copy of the amendatory endorsements, including but not necessarily limited to the additional insured endorsement, evidencing the insurance requirements of the Consultant before commencement of the work. Certificates of coverage and endorsements as required by this section shall be delivered to the City within fifteen (15) days of execution of this Agreement.

E. **Notice of Cancellation.** The Consultant shall provide the City with written notice of any policy cancellation, within two business days of their receipt of such notice.

F. **Failure to Maintain Insurance.** Failure on the part of the Consultant to maintain the insurance as required shall constitute a material breach of contract, upon which the City may, after giving five business days' notice to the Consultant to correct the breach, immediately terminate the contract or, at its discretion, procure or renew such insurance and pay any and all premiums in connection therewith, with any sums so expended to be repaid to the City on demand, or at the sole discretion of the City, offset against funds due the Consultant from the City.

8. **Independent Contractor.** The Consultant and the City agree that the Consultant is an independent contractor with respect to the services provided pursuant to this Agreement. Nothing in this Agreement shall be considered to create the relationship of employer and employee between the parties hereto. Neither the Consultant nor any employee of the Consultant shall be entitled to any benefits accorded City employees by virtue of the services provided under this Agreement. The City shall not be responsible for withholding or otherwise deducting federal income tax or social security or for contributing to the state industrial insurance program, otherwise assuming the duties of an employer with respect to the Consultant, or any employee of the Consultant.

9. **Covenant Against Contingent Fees.** The Consultant warrants that he has not employed or retained any company or person, other than a bonafide employee working solely for the Consultant, to solicit or secure this contract, and that he has not paid or agreed to pay any company or person, other than a bonafide employee working solely for the Consultant, any fee, commission, percentage, brokerage fee, gifts, or any other consideration contingent upon or resulting from the award or making of this contract. For breach or violation of this warrant, the City shall have the right to annul this contract without liability, or in its discretion to deduct from the contract price or consideration, or otherwise recover, the full amount of such fee, commission, percentage, brokerage fee, gift, or contingent fee.

10. **Discrimination Prohibited.** The Consultant, with regard to the work performed by it under this Agreement, will not discriminate on the grounds of race, religion, creed, color, national origin, age, veteran status, sex, sexual orientation, gender identity, marital status, political affiliation or the presence of any disability in the selection and retention of employees or procurement of materials or supplies.

11. **Assignment.** The Consultant shall not sublet or assign any of the services covered by this Agreement without the express written consent of the City.

12. **Non-Waiver.** Waiver by the City of any provision of this Agreement or any time limitation provided for in this Agreement shall not constitute a waiver of any other provision.

13. **Termination.**

    A. The City reserves the right to terminate this Agreement at any time by giving ten (10) days written notice to the Consultant.

    B. In the event of the death of a member, partner or officer of the Consultant, or any of its supervisory personnel assigned to the project, the surviving members of the Consultant hereby agree to complete the work under the terms of this Agreement, if requested to do so by the City. This section shall not be a bar to renegotiations of this Agreement between surviving members of the Consultant and the City, if the City so chooses.

14. **Applicable Law; Venue; Attorney's Fees.** This Agreement shall be subject to, and the Consultant shall at all times comply with, all applicable federal, state and local laws, regulations, and rules, including the provisions of the City of Duvall Municipal Code and ordinances of the City of Duvall. In the event any suit, arbitration, or other proceeding is instituted to enforce any term of this Agreement, the parties specifically understand and agree that venue shall be properly laid in King County, Washington. Each party in any such action shall bear own attorney's fees and costs of suit. Venue for any action arising from or related to this Agreement shall be exclusively in King County Superior Court.

15. **Severability and Survival.** If any term, condition or provision of this Agreement is declared void or unenforceable or limited in its application or effect, such event shall not affect any other provisions hereof and all other provisions shall remain fully enforceable. The provisions of this Agreement, which by their sense and context are reasonably intended to survive the completion, expiration or cancellation of this Agreement, shall survive termination of this Agreement.

16. **Notices.** Notices to the City of Duvall shall be sent to the following address:

City Clerk
City of Duvall
P.O. 1300
Duvall, WA 98019

Notices to Consultant shall be sent to the following address:

Daniel A Swedlow
Summit Law Group
315 Fifth Avenue S. – Suite 1000
Seattle, WA 98104
(206) 676-7000

17. **Entire Agreement; Modification.** This Agreement, together with attachments or addenda, represents the entire and integrated Agreement between the City and the Consultant and supersedes all prior negotiations, representations, or agreements written or oral. No amendment or modification of this Agreement shall be of any force or effect unless it is in writing and signed by the parties.

DATED this 3rd day of September, 2020.

CITY OF DUVALL

Amy Ockerlander, Mayor

CONSULTANT

Daniel A. Swedlow, Attorney

Attest/Authenticated:

Jodi Wycoff, City Clerk

Approved as to Form:

Daniel P. Kenny, City Attorney

Attachments:
Exhibit A – Scope of Services – Letter of Engagement
Certificate of Insurance (to be supplied by consultant)

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DATED this 3rd day of September, 2020.

CITY OF DUVALL

Amy Ockerlander, Mayor

CONSULTANT

Daniel A. Swedlow, Attorney

Attest/Authenticated:

Jodi Wycoff, City Clerk

Approved as to Form:

Daniel P. Kenny, City Attorney

Attachments:
Exhibit A – Scope of Services – Letter of Engagement
Certificate of Insurance (to be supplied by consultant)

EX. A - Contract 2020-21

SUMMIT
LAW GROUP

DANIEL A. SWEDLOW
DID: (206) 676-7024
EMAIL: *dans@summitlaw.com*

315 Fifth Ave S Suite 1000
Seattle, Washington 98104
phone · 206.676.7000
fax · 206.676.7001

July 30, 2020

Dana Mason
Finance Director
City of Duvall
15535 Main Street NE
Duvall, WA 98019

Re: Engagement Letter

Dear Ms. Mason:

Thank you for hiring Summit Law Group to represent the City of Duvall with regard to the City's labor negotiations and other labor and employment matters. We will represent the City's interests vigorously and do our very best to be prompt, thoughtful and practical in everything we do on the City's behalf.

If you have not yet had an opportunity to view the background of Summit Law Group, please take a moment to visit our website (*www.summitlaw.com*). Summit Law Group was founded on the principle that a modern law firm should be focused on its customers, not its lawyers. We designed Summit to be leaner, more efficient and more customer-responsive than traditional law firms. We want to form productive working partnerships with our customers, delivering a better product at greater value.

Fee Arrangements. We will build a working partnership with you to enable you to maintain control over the scope and cost of your legal work. We are especially interested in fee arrangements that provide incentives for us to be cost effective and that reward us for superior results. Unless we agree otherwise, however, we will charge for our services by the billable hour. We encourage you to consider and suggest other ways of measuring the value of our services during the course of our relationship. Whether you choose to be billed by the hour, or some other fee arrangement, we, unlike any other law firm we know of in the country, invite you to pay in accordance with your perception of the value of our legal services. To that end, within 30 days of our invoice, you are free to adjust our billed amount—upward or downward—based on your perception of the value that you have received.

At present, my current hourly rate applicable to this engagement is $320. The billing rates and contact information of the Summit team members who are expected to work on this engagement are included in the Appendix to this letter.

Unless otherwise agreed in writing, we will provide you with full itemized electronic billing information on a monthly basis, including people working on your engagement, their hours and rates and a detailed description of services performed. Payment of our bill is due upon receipt of our invoice and bills not paid within thirty (30) days of the date of the invoice will accrue interest at a rate of 1% per month. We do not charge for telephone, photocopying, computerized legal research, local travel, or other costs that are properly part of our cost of doing business. We charge our actual costs for out-of-town travel and meals, working meals, and other vendor expenses (*e.g.*, for high volume photocopying, courier and messenger services and other extraordinary expenses). We also charge for certain third-party vendor expenses related to document processing and discovery, electronic or otherwise (which may include the use of artificial intelligence). Our billings are monthly, unless otherwise agreed.

Attached to this letter is an Appendix that includes additional terms of this engagement. Together, this letter and the Appendix constitutes the agreement between you and us regarding our professional services. If the terms of our representation as described above and in the Appendix are acceptable, please date and sign this letter where indicated below and return it to me via mail, facsimile or electronic mail. This agreement will take effect on the date of your signature or when we first perform services, whichever is earlier.

Sincerely,

SUMMIT LAW GROUP, PLLC



Daniel A. Swedlow

AGREED AND ACCEPTED:

CITY OF DUVALL

By Amy Petersen
Title Mayor
Dated 9/3/2020

APPENDIX TO ENGAGEMENT LETTER OF SUMMIT LAW GROUP, PLLC

The term "you" below refers to the client in this engagement. If the client is an entity, then we have addressed the accompanying engagement letter to the client's authorized representative, but the term "you" below refers to the entity client.

IDENTITY OF CLIENT.

In representing a client which is an entity, we do not thereby also separately represent affiliates or other constituents of the entity, nor do we separately represent the owners, officers, directors, founders, managers, members, partners, fiduciaries, or employees of the entity in their individual capacities or with respect to their individual affairs. We will rely upon you to inform them of this fact where appropriate. Unless we agree otherwise in writing, we do not by virtue of our representation of you also represent any entity that controls you, is controlled by you or is under common control with you. We will look to the addressee of the engagement letter for our instructions on behalf of the entity, unless you inform us otherwise in writing.

SCOPE OF ENGAGEMENT.

The scope of this engagement is described in the accompanying engagement letter. The scope of our engagement may change if you ask us to provide different or additional services and we agree in writing to provide them or we actually proceed to provide them and bill you for them. If our engagement changes, the terms set out in the accompanying engagement letter and this Appendix will apply to the changed engagement, unless we enter into a further agreement modifying this one. Our engagement may be terminated by either one of us upon written notice to the other.

SUMMIT TEAM ASSIGNED TO THIS ENGAGEMENT.

At Summit Law Group, we assign a team to your engagement. Your team includes the individual(s) listed below:

Professional	Direct Dial	Email	Hourly Rate
Daniel A. Swedlow	(206) 676-7024	*dans@summitlaw.com*	$320

We may in the future add other professionals to your team depending on the time and experience required by your matters, which may include contract personnel with appropriate credentials to complete certain work under our supervision. We will charge you for the time of these individuals at rates established by us based on their experience and expertise, the same as we do for our employees and partners.

BILLING AND PAYMENT.

We review and make changes to our hourly rates from time to time, usually on an annual basis. Changes may or may not apply across the board to all timekeepers.

Timely payment in full is a condition to our continuing provision of services. You agree that we may suspend or terminate our services and may withdraw from this engagement in the event our fees and other charges are not timely paid, subject to applicable rules governing attorney withdrawal. In extreme cases, we may pursue recovery of unpaid fees through collection actions or litigation. If our engagement is terminated by either you or us for any reason, you will remain obligated to pay us all fees and other charges properly incurred up to the termination date.

Although on occasion we will in good faith attempt to estimate in advance the fees and costs of an engagement, we are not bound by any such estimate unless agreed in writing. Also, we are not obligated to revise, amend or correct any such estimate if subsequent developments make it inaccurate.

If we have more than one client in this engagement, then each is jointly and severally obligated to pay us unless we agree otherwise in writing. Any outside arrangements you may have for allocation, reimbursement, insurance, indemnification or the like will not relieve you of your obligation to pay amounts due.

CONFLICT CHECK.

At the beginning of each engagement we conduct a review of potential conflicts of interest to ensure compliance with the Rules of Professional Conduct, using names that you have provided. As we move forward, please be sure to immediately provide us with any new or different names of adverse or interested parties so that we may update our conflict check.

COMMUNICATIONS WITH SUMMIT.

Our communications with you may include legal advice and information that is protected by the attorney-client privilege, the work product doctrine, or other protections from disclosure. To maintain these privileges and protections, both you and Summit must take reasonable measures to safeguard the confidentiality of our communications. Please be aware that if you reveal information to a third party, including by communicating with us on an email system accessible by a third party or on a mobile device that you do not control, protections of privilege and confidentiality may be lost. You should also be aware that there may be circumstances in which we have an independent ethical duty to reveal privileged information.

FRAUD PREVENTION.

During the course of our engagement, there may be a need or desire to arrange for the electronic transfer of funds to Summit or to other parties. In the event that you receive a request for a funds transfer, wire transaction, or other matter involving your financial accounts or your account at Summit, please confirm the legitimacy of the request verbally with a known contact at Summit before you proceed with the transaction.

OWNERSHIP AND RETURN OF FILES.

By executing our engagement letter, you agree that the files generated or accumulated as a result of our representation belong to Summit Law Group. If you desire an electronic copy of

the files at the conclusion of our representation, you will be provided with an electronic copy of the files. Under our document retention policy, we normally destroy client records, including electronic records, seven years after the conclusion of a matter unless other arrangements are made or the nature of the matter requires a longer retention period. E-mails that are duplicative, routine or otherwise not part of the client file may be destroyed before the end of the seven-year period, without prior notice to you.

DISPUTE RESOLUTION AND ARBITRATION.

If you become dissatisfied with any aspect of our relationship, including the quality or adequacy of our representation, you agree to bring that to our attention, and we each agree to negotiate in good faith to resolve the matter. If we cannot reach agreement, we each agree to comply with any mandatory dispute resolution procedures that apply to any such dispute. If such applicable mandatory dispute resolution procedures have been completed or waived, and a dispute still exists between us, we each agree that the dispute will be submitted for mediation under the rules of JAMS. If such mediation fails, and a dispute still exists between us, we each agree that the dispute will be submitted to binding arbitration under the rules of JAMS. In arbitration, there is no right to a trial by jury and the arbitrator's legal and factual determinations are generally not subject to appellate review.

By signing this agreement, you acknowledge that the agreement to arbitrate results in a waiver of your right to a court or jury trial for any fee dispute or malpractice claim. This also means that you are giving up your right to discovery and appeal. If you later refuse to submit to arbitration after agreeing to do so, you may be ordered to arbitrate pursuant to the provisions of Washington law. You acknowledge that before signing this agreement and agreeing to binding arbitration, you are entitled to, and have been given, a reasonable opportunity to seek the advice of independent counsel.

City of Duvall
Small Town. Real Life.

Contract Amendment
Between City of Duvall and Summit Law for Legal Services

AMENDMENT #1

Service Provider Name:	Summit Law
Professional Services:	Legal Services
Original Contract Date:	September 3, 2021 – December 31, 2021
Amendment #1 - Agreement Extension:	January 1, 2022 – December 31, 2022
Reason for Agreement Amendment:	The City of Duvall wishes to extend the contract through December 31, 2022.
Original contract amount:	$15,000.00
Amendment #1	Section 3 of the contract is amended to move the end date of the contract from December 31, 2021 to December 31, 2022. *"3. Duration of Agreement; Time for Performance. This Agreement shall be in full force and effect for a period commencing upon execution and ending December 31, ~~2021~~ 2022, unless sooner terminated under the provisions hereinafter specified. Work under this Agreement shall commence upon written notice by the City to the Consultant to proceed. The Consultant shall perform all services and provide all work product required pursuant to this Agreement no later than December 31 , ~~2021~~ 2022 unless an extension of such time is granted in writing by the City."* Section 4(A) of the contract is amended to remove the not-to-exceed amount of $15,000. As of the date of this amendment the contract will be on a time and materials basis. Contractor shall work as requested by the City. *"4(A). Payment for the work provided by the Consultant shall be made as provided in Exhibit "A" attached hereto on a time and materials basis.~~, provided that the total amount of payment to the Consultant shall not exceed $15,000.00 (Fifteen Thousand Dollars and no cents) without express written modification of the Agreement signed by the City."~~*
New contract total amount:	Time and materials.

15535 Main Street NE • P.O. Box 1300 • Duvall, WA 98019 • (425) 788-1185 • Fax 788-8097
www.duvallwa.gov

All other terms of the contract remain the same.
The City of Duvall and Summit Law hereby accept the above-described Amendment to the Agreement and authorizes the performance of the changes specified. This instrument constitutes an Amendment to the Contract Agreement only when the authorizing signatures are affixed.

DATED this _____ day of _____, 2021.

City of Duvall	**Summit Law**
By:	By:
_____	_____
Amy Ockerlander, Mayor	Authorized Representative
	_____
Finance Authorization:	(printed Name, Title)
_____	
Dana Mason, Finance Director	
Attested by:	
_____	
Jodi Wycoff, City Clerk	

Agenda Bill

AB# 21-78c

Duvall City Council

Meeting Date: 9/7/2021

Subject Amend Chapter 4 to Add Administrative Leave: 4.10.035

Document Type Ordinance

Department Administration

Contact Ryan Cotton, Interim City Administrator

Attorney Review Under Review

Committee Recommendation N/A N/A

Planning Commission Recommendation N/A

Handling Normal **Deadline Date** 9/7/2021

Needed from Council Action

Recommendation

Adopt Ordinance amending Chapter 4, Section 4.10.035 - To Add Administrative Leave and to amend existing section 4.10.030(F)

Motion: Adopt Ordinance enacting an amendment to Chapter 4 "Personnel" of the Municipal Code by creating Section 4.10.035 "Administrative Leave"; and amending Section 4.10.030 "Overtime Pay and Compensation Time"; providing for severability; and establishing an effective date.

Council Review History

- Discussion under New Business – July 20, 2021
- Discussion under Unfinished Business – August 17, 2021
- Discussion under Unfinished Business – September 07, 2021

Attachments/References

- Proposed Ordinance
- Administrative Leave Survey results with deletion of recommendations

Routing

Director: Ryan Cotton, ICA **Approved:** RC 9/2/2021

Administrator: Admin Name **Approved:**

Budget Impacts Approved in Budget

Expenditure

			Budget		
Fund	**Account Description**	**Estimated Cost**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
Various	Salary and Wages	$0	$0	$0	$0
Various	Benefits	$0	$0	$0	$0
Legislative	Official Publications	$100	$8000	$0	$0

Revenue

			Budget		
Fund	**Account Description**	**Revenue**	**2021/2022 Budget**	**Budget Amendment Needed**	**Amended 2021/2022 Budget**
		$0	$0	$0	$0
		$0	$0	$0	$0

Notes

Since this policy recognizes an existing past practice in recent years there are no additional expenditures.

Legislative expenditure is for codifying the code changes.

Verified by Finance: DM 8/12/2021

Administrative leave is a pre-existing, non-cost item included in several non-represented employment agreements and is a standard operating procedure in Duvall and in multiple other Washington communities.

Nevertheless, last year's audit included a note that the terms and conditions of administrative and/or Mayor Authorized leave policy needs to be clarified. This policy update clarifies the terms in which administrative leave may be issued and used and will ensure consistent application of policy among eligible employees.

The following language and DMC amendments was drafted by Finance Director Mason on June 9, 2021 in preparation for review by Mayor Ockerlander and the Human Resources Committee. The Committee met on July 12th and affirmed the drafted language. The City Clerk and City Attorney assisted crafting an ordinance amendment.

A key intent of the ordinance is to make the accrual of this additional leave consistent among the employees who work more than 40 hours and are ineligible for overtime payments. A secondary intent is to ensure that employees who separate from the city do not get paid for any such banked time.

The City Council discussed this ordinance on July 20th and requested clarification on total leave in other communities in the survey. Clarifications are provided by the Finance Director and are noted in track changes on that attached Administrative Leave Survey.

Another factor to consider in standardizing this leave is the total number of hours is not expected to cover the full amount of the extra time spent by Duvall's Directors and other non-represented staff who regularly work long days and are exempt from overtime. Whether it is assisting the City Council, the Planning Commission, representing the City at other evening meetings, and/or just donating their time after normal work hours because of their public service dedication and/or to keep abreast of the workload, this administrative leave time is a way to partially recognizing their effort which routinely impacts their free time and family time for the benefit of the Duvall community.

The recommended leave policy is attached as an ordinance ready for your adoption with, or without, amendment. For those Council members that seek additional accountability, this ordinance requires future accrual, caps totals, limits carryover, and eliminates cash value for future administrative leave not subject to current Council-approved employment agreements.

The key provisions of the ordinance are to:

1. Create consistent limits
2. Provide for a Standard Process:
    a) Determined by position
    b) Accrual cap of 60 hrs.
    c) No cash value; no payout at end of employment
    d) Maximum of 96 hrs.
    e) Max carryover of 40 hrs.
    f) Annual evaluation

Note: *Although there are employment agreements that exist with more administrative leave provided now, they will not be impacted by this code change since these contracts were signed before the above changes go into place.*

Recommendation

Review and adopt a Duvall Municipal Code amendment pertaining to a new Chapter 4, Section 4.10.030 - To Add Administrative Leave, with or without, amendment.

CITY OF DUVALL
WASHINGTON

ORDINANCE NO.

AN ORDINANCE OF THE CITY OF DUVALL, WASHINGTON, ENACTING AN AMENDMENT TO CHAPTER 4 PERSONNEL OF THE MUNICIPAL CODE, BY CREATING SECTION 4.10.035 - ADMINISTRATIVE LEAVE; AND AMENDING SECTION 4.10.030 – OVERTIME PAY AND COMPENSATION TIME; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, the Washington State Auditor recommended the inclusion of an Administrative Leave policy to be clear and consistent; and

WHEREAS, the City Council generally acts on all such auditor recommendations; and

WHEREAS, the Duvall Municipal Code needs to be amended in order address the auditor's suggestions; and

WHEREAS, Administrative leave is a pre-existing, non-cost item included in several non-represented employment agreements as a standard leave type now.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DOES ORDAIN AS FOLLOWS:

Section 1. Code Adopted. The City Council hereby adopts new Section 4.10.035 of Chapter 4 Personnel of the Duvall Municipal Code as shown in the following:

4.10.035 Administrative Leave.

A. In recognition of hours worked by exempt employees beyond the standard workweek, and /or normal business hours, administrative leave is available to employees working full-time in eligible non-represented FLSA exempt positions in which work hours regularly exceed 40 hours per week. Administrative leave shall be granted by the Mayor at a rate per pay period that does not exceed ninety-six (96) hours per calendar year.

B. The amount granted will be determined by position based on the estimated workload in excess of 40 hours per week for that position, and it will be evaluated each December to establish the amount for the following year.

C. Exempt employees who work few or no hours outside of the standard workday and/or workweek are not granted administrative leave.

D. The use of administrative leave is to be scheduled in the same manner as vacation time off is scheduled.

E. This leave does not have a cash value and will not be paid out at yearend or at termination.

F. Administrative leave will stop accruing once an employee's administrative leave bank reaches sixty (60) hours to encourage use.

G. A bank of forty (40) hours of administrative leave may be carried over from year to year. Exceptions may be made by the Mayor with documentation confirming that the leave was unable to be used, subject to review and final confirmation or denial by the City Administrator.

Section 2. Code Revised. The City Council hereby amends Section 4.10.030 of Chapter 4 Personnel of the Duvall Municipal Code as shown in the following:

4.10.030(F) The police chief, police commander, finance director, community development director, building official, public works director, city engineer, information technology manager, planning manager, the recycling/grants coordinator, and the city administrator, and other appointed management and administrative personnel shall not be eligible for overtime or compensatory time. ~~However, the chief administrative officer may grant reasonable administrative leave to management personnel in recognition of the assumption of additional duties or responsibilities beyond the ordinary demands of their position in a fiscal year.~~

Section 3. Severability. If any section, sentence, clause or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause or phrase of this ordinance.

Section 4. Effective Date. This Ordinance shall be published in the official newspaper of the City and shall take effect and be in full force thirty (30) days after the date of publication.

ADOPTED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE _____ DAY OF _____, 2021.

CITY OF DUVALL

Approved as to form:

_____
Mayor Amy Ockerlander

_____
Daniel P. Kenny, City Attorney

ATTEST/AUTHENTICATED

_____
Jodi Wycoff, City Clerk

Passed by the City Council:
Ordinance No.
Date of Publication:

Administrative Leave Overview

The City selected 29 cities that had populations between 5,000 and 50,000 to research additional leave provided to exempt employees. All but three of the cities selected provide some form of additional leave, either from administrative leave, additional vacation hours, or both.

Of the cities that provide administrative leave to exempt employees:

- Seven provide up to 40 hours
- One provides 48 hours
- One provides 54 hours
- Six provide up to 80 hours
- One provides up to 90 hours
- One provides up to 96 hours
- Two provide all hours worked over 40 hours
- Two provide hours at the discretion of the City Manager/Mayor

Of the cities that provide **additional vacation** to exempt employees:

- One provides 80 additional hours of vacation
- One provides 80 additional hours of vacation to Directors and 40 additional hours for Managers
- One provides 64 additional hours of vacation at the start of employment
- One provides 48 additional hours of vacation
- One provides 48 additional hours for the City Manager/Directors and 24 additional hours for Managers/Supervisors, plus admin leave for unusual work circumstances

See the next page for a summary of the cities selected and the exempt leave provided and the Appendix for links to each city's policy and/or a snapshot of the policy.

Admin Leave Summary Table

	City	Exempt Leave Provided
1	**Sultan**	**None officially**
2	Sumner	Varies. Granted by Mayor or City Admin.
3	Kelso	40 Hours
4	Port Orchard	80 additional hours of vacation for all exempt employees
5	Ferndale	Excess of a 40-hour work week on a one to one basis, accruals not to exceed 240 hours
6	Sunnyside	80 Hours
7	Mukilteo	54 Hours
8	Issaquah	80, 60, or 40 Depending on Position & Employee Type
9	Lynnwood	80 Hours
10	Longview Washington	Additional vacation accruals for exempt employees, starting at 48 additional hours
11	Mount Vernon	40 Hours
12	Wenatchee	Supervisor may grant extra paid time off due to emergencies or deadlines
13	Bothell	80 Hours
14	Ellensburg	40 Hours
15	Tumwater	None
16	Washougal	48 additional hours vacation for Directors/City Manager, 24 additional hours vacation for Managers/Supervisors, plus admin leave for unusual, non-customary work demands
17	**Monroe**	**Appointed exempt employees 80 hours, non-represented exempt 40 hours**
18	Toppenish	5.3 additional vacation hours per month (64 annually) for exempt employees plus admin leave for unusual, non-customary work demands
19	North Bonneville	80 Hours
20	Sequim	40 additional hours of vacation for exempt managers, 80 additional hours of vacation for Department Directors
21	Woodland	96 Hours at the Mayor's Discretion
22	**Woodinville**	**Up to 40 hours, granted by City Administrator**
23	Sammamish	40 hours
24	Mill Creek	40 hours
25	Kenmore	40 or 80 hours depending on who goes to council meetings
26	Lake Forest Park	48 hours
27	**North Bend**	**36 to 90 hours, with directors only receiving 90 hours**
28	**Snoqualmie**	**Hour for hour comp time, 40 hours max accrual at any given time, 24 hours carried over at year end**
29	**Snohomish**	**40 hours for City Administrator only. Paid time off in lieu of sick and vacation for all employees**
30	**Black Diamond**	**No response**
31	**Carnation**	**No response**

Bold indicates a salary study comparable city

Appendix

City of Sultan

https://www.codepublishing.com/WA/Sultan/#!/Sultan02/Sultan0230.html#2.30

City of Sumner

https://www.codepublishing.com/WA/Sumner/#!/Sumner02/Sumner02100.html#2.100

2.100.630 Management leave.

SHARE

Management leave may be granted to employees at time of hire as approved by the city administrator or mayor. Management leave will have no cash-out value and will not be carried over at the end of the calendar year. In temporary positions of high function but limited duration, and with the approval of the city administrator or mayor, management leave may be offered as part of a compensation package.

The city recognizes that certain FLSA-exempt positions are required to work substantially in excess of the standard work schedule for the city on an ongoing, regular basis. The mayor or the city administrator has the authority to authorize additional management leave for these positions. (Ord. 2595 § 1 (part), 2017)

City of Kelso

https://www.kelso.gov/sites/default/files/images/documents/employee_handbook_2019_res_18-1203.pdf

Exempt employees are entitled to an additional five (5) working days (40 hours) of vacation each anniversary year. (See Section 2 of this handbook for definitions of exempt and non-exempt employees.)

Exempt employees, who have accumulated in excess of 240 hours, may choose, at the end of the fiscal year, to receive a cash payment in lieu of time off for the additional five (5) day vacation benefit described above. No more than forty (40) hours will be paid in cash.

City of Port Orchard

https://docs.google.com/viewerng/viewer?url=https://storage.googleapis.com/proudcity/portorchardwa/uploads/2020/06/City-of-Port-Orchard-Personnel-Policy-Manual-Sept-9-2020.pdf

Exempt Employees

All Full Time Exempt employees shall be entitled to one hundred-sixty (160) hours vacation leave per year. The employee's vacation account shall be credited on a prorated monthly basis. In addition, each year on the employee's anniversary date, after three (3) full years of continuous employment, eight (8) additional hours of vacation for each year will be credited to his/her vacation account. The maximum annual vacation accrual rate shall not exceed 304 hours.

City of Ferndale

https://www.cityofferndale.org/HR/PersonnelPolicyUpdated2018.pdf

Relating to Admin Leave

(9) Exempt Timesheets and Administrative Time Off. Personnel employed in executive, administrative, professional, or certain computer related capacities generally are exempt from the provisions of the Fair Labor Standards Act. If you have a question as to whether your position is exempt, please contact the Human Resources.
(a) Exempt employees must complete hourly time records to account for daily attendance, attendance exceptions, and use of sick, vacation or administrative leave.
(b) Exempt employees do not receive overtime compensation. Exempt employees are eligible to receive administrative time off on a one for one basis for work in excess of forty hours during their normal workweek.
(c) Maximum accruals of administrative time shall be limited to 240 hours. Exempt employees will not continue to accrue administrative time after reaching the maximum.
(d) Upon termination, accrued administrative time hours are not eligible for payout.

City of Sunnyside

https://www.codepublishing.com/WA/Sunnyside/#!/Sunnyside02/Sunnyside0262.html#2.62.090

C. Exempt Employee Executive Leave. Positions which are exempt under the FLSA are not entitled to compensatory time or overtime. Positions which are exempt under the FLSA shall receive executive leave of 80 hours each year, to be identified as "exempt leave."

1. This leave shall be used in the year earned and shall not be accumulated.

2. At separation for whatever reason, any remaining exempt leave shall be forfeited and the employee shall not receive any compensation for the forfeited leave.

City of Mukilteo

https://mukilteowa.gov/wp-content/uploads/Employee-Handbook.pdf

Administrative Leave for Exempt (Non-Represented) Employees

Exempt employees are not eligible to receive overtime pay or compensatory time. However, exempt employees are eligible to receive Administrative Leave.

Exempt employees, which may be determined from time to time by the City Administrator and applicable laws and regulations, may annually receive fifty-four (54) hours of administrative leave that will be credited at the beginning of the year for ease of administration, and those hired after the first of the year will received a pro-rata number of hours based on the accrual rate of four and one-half (4.5) hours each month. Paid administrative leave must be used within the calendar year it is earned or it will be forfeited. Those who leave City employment will be charged for any administrative hours taken should their time taken exceed the accrual rate of 4.5 hours each month and length of service for that year.

City of Issaquah
https://www.issaquahwa.gov/DocumentCenter/View/5101/Issaquah-Personnel-Policies-2020?bidId=

7.25 MANGEMENT LEAVE

In recognition of attendance at public meetings and other demands which may require the attendance or efforts of FLSA exempt employees outside of normal working hours, an annual Management Leave bank will be provided.

The Senior Leadership Team shall receive eighty (80) banked Management Leave hours annually, managers as determined by the Human Resources Director shall receive sixty (60) banked management leave hours annually, and all other FLSA exempt employees shall receive forty (40) banked management leave hours annually. The amount of banked management leave hours will be pro-rated for new hires or part-time employees.

Deposits will be made on December 16 to be used during the year (ending December 15). Any management leave balances as of December 15th will not be allowed to be carried forward into the next year and will be forfeited. Upon separation from the City, a balance of Management Leave will be forfeited.

Requests to take Management Leave will be in the same manner as vacation leave is requested.

City of Lynwood
https://www.codepublishing.com/WA/Lynnwood/#!/Lynnwood02/Lynnwood0254.html#2.54.170

3. Administrative Leave. The mayor may grant administrative leave to department heads and other senior staff after advising the city council. Such leave may be for a period of up to 10 working days for those individuals who perform extraordinary job responsibilities and duties. “Administrative leave” is defined as leave granted for performance of responsibilities and duties beyond an employee’s typical responsibilities and duties as specified in their city job description and which clearly benefits the city. Administrative leave for extraordinary performance may be granted in accordance with the following factors, criteria and limitations:

a. Duration of the performance;

b. Level of responsibility associated with the performance;

c. The extent to which the performance requires prolonged or frequent travel or time away from home;

d. Situations for administrative leave include, but are not limited to:

i. Intergovernmental leadership efforts;

ii. Special assignments or projects, whether internal or external to the city;

iii. Filling an official “acting” position in addition to normal work responsibilities and duties;

e. Proposed activities that may qualify for administrative leave shall be identified and reported to the mayor and/or department head in advance whenever possible, unless there are unforeseen circumstances resulting in the need for such performance;

f. Administrative leave shall not be granted for the purposes covered by employee recognition programs in LMC 2.48.235; and

g. Administrative leave shall not be granted if the employee's vacation balance is at or above the accrual maximum when the determination for administrative leave is made. Administrative leave, once granted, shall be treated as vacation leave.

F. Appeals. Department heads and other senior staff covered by this program may request review of its application by written request to the mayor. Such request shall include the basis of the request and specific references to mistakes of fact or other alleged errors. The mayor shall review the request and shall notify the employee in writing within 10 days of his or her decision. The mayor's decision shall in all respects be final and not subject to further appeal.

City of Longview Washington
http://mrsc.org/getmedia/95A0683C-1D33-46CD-AD9C-E60A850F0F78/l65perspol.aspx

Effective 1-1-01 Exempt employees accrue vacation according to the schedule below. Exempt employees receive additional vacation accrual in recognition of the time demands of their position and in lieu of eligibility for compensatory time off.

Years of Service	Hours per Year	Days per Year*	Maximum Hours
Start	128	16	256
2	144	18	288
5	176	22	352
10	200	25	400
15	216	27	432
20	**232**	**29**	**464**
	240**	**30****	**480****

*Based on 8 hour work shifts

** **Effective January 1, 2006, accrual at 20 years of service increases by 8 hours.**

City of Mount Vernon
https://mountvernonwa.gov/DocumentCenter/View/10646/Mount-Vernon-Handbook-2018-with-Appendices---PDF

D. Exempt employees, in recognition of responsibilities, duties and time commitments outside of the normal work hours, shall be entitled to an additional five (5) work days of vacation time annually.

E. In addition to vacation periods set forth above, the Mayor is authorized to grant up to five (5) work days of vacation time to those employees who are required to attend a significant number of meetings such as City Council, Planning Commission, task forces, committees, etc., outside of normal working hours or in recognition of the employee's past experience. Such time shall be granted within the sole discretion of the Mayor.

City of Wenatchee
https://www.wenatcheewa.gov/home/showdocument?id=11398

EXEMPT AND NON-EXEMPT CLASSIFICATIONS

All City positions are designated as either "exempt" or "non-exempt" according to the Fair Labor Standards Act (FLSA). The FLSA designation of non-exempt or exempt does not have anything to do with whether or not you are represented by a union or not.

An **exempt employee** is one whose duties are primarily executive, administrative, or professional. Such positions are not restricted to a specific number of hours in a workday or workweek. Exempt employees are paid to do the job. They are paid a salary and do not receive either overtime pay or compensatory paid time off. In addition, neither will pay deductions be made for partial day absences, that is, absences less than eight (8) full hours away from the job such as personal time off for errands or appointments.

While this classification allows some flexibility in work scheduling, such positions frequently require more than forty (40) hours per week of work and may include work on evenings and weekends. It is the responsibility of exempt staff to maintain good work habits while being accountable and available to their staff and supervisor. The Department Director may authorize paid absences or hours away from the job to perform personal errands and appointments on a case by case basis to help account for time provided by employees in well excess of forty (40) hours per week. Under conditions of excessive extra work due to emergencies or deadlines your supervisor may grant informal use of extra paid time off in consideration of your extraordinary effort. The

City of Bothell
http://www.bothellwa.gov/DocumentCenter/View/103/53-Overtime-Compensatory-Time-and-Management-Leave-PDF

PROCEDURES. Management leave, which is paid leave, is provided in accordance with the following provisions:

a. Management Leave Accrual. Management Leave is available to employees working full-time in eligible non-represented FLSA exempt positions identified pursuant to the provisions of Section 5.B.2.e. Management leave shall accrue annually at the rate of eighty (80) hours (6.67 hours/month) effective January 1st of each calendar year and shall be prorated for eligible new employees based upon their month of employment or FLSA status change, with accruals beginning the first day of the month following their date of hire. Accrued Management Leave equal to or less than one year's accrual will carry forward to the next calendar year, except that at no time shall the accrual exceed a maximum of one year's accrual (80 hours). Accruals will occur only when the employee's Management Leave balance is less than 80 hours. In other words, accruals will cease when an employee has "banked" a total of 80 hours Management Leave.

City of Wenatchee
http://mrsc.org/getmedia/85cae517-2ccf-4fc6-9c1c-e87880f7c2c6/e2personnelPolicy.pdf.aspx

(g) Exchange Time Off. Every January 1st, the City will give an exempt employee 40 hours of Exchange Time Off. An exempt employee may use exchange time off to offset any deficit in meeting the requirements of paragraph 2.2(i) The Mayor must preapprove an exempt employee's use of Exchange Time Off. An exempt employee must take exchange time off in hourly increments. Exchange time off hours do not carry over year to year. Unused hours on December 31st of each year, will be lost. Accrued exchange time off hours are not eligible for payout at any given time.

City of Ellensburg

http://mrsc.org/getmedia/7b17b621-4653-41ee-a7b2-cf371cc003f7/e43personnelPolicy.pdf.aspx

8.15. EXEMPT LEAVE

In recognition of the performance of professional responsibilities of employees who work beyond the regularly scheduled work day, who are not compensated for overtime regardless of the time required to perform assigned tasks, and who are classified as "exempt" under the Fair Labor Standards Act, up to forty (40) hours of paid exempt leave may be granted each calendar year subject to review and approval by the City Manager or his/her designee. Persons first employed in any month after January will be granted a pro-rata exempt leave bank through December of their first year of employment. Exempt leave must be used during the year in which it is granted; it cannot be carried over from year to year, and it may not be cashed out. Exempt leave may only be taken in increments greater than two (2) hours.

City of Tumwater

https://www.ci.tumwater.wa.us/home/showpublisheddocument?id=2931

City of Washougal

http://mrsc.org/getmedia/dcc61c3e-7cc0-4a74-ad55-5cdf4b2853fa/w36perspol.pdf.aspx

Additional vacation. City Manager and Department Heads start with 12 hours per month, managers and supervisors with 10 hours per month. Non-exempt employees start with 8 hours per month.

In additon, "Administrative leave with pay may also be granted to employees in positions exempt from the Fair Labor Standards Act to compensate for unusual, non-customary work demands."

City of Monroe

The City of Monroe recognizes that exempt employees are expected to work irregular hours in excess of the standard work week in order to attend City Council, Commission

and Board meetings, in addition to special projects and emergency situations. In recognition for hours worked by exempt employees beyond the standard work week, all appointed city positions per Monroe Municipal Code (MMC) 2.28.010 and not represented by a bargaining unit are granted 80 hours of exempt leave each calendar year. All other exempt employees not represented by a bargaining unit are granted 40 hours of exempt leave each year.

Use of Exempt Leave

a) Leave is to be used for paid days off without reducing an employee's accrued vacation.

b) Use of Exempt leave is approved in accordance with the leave policy.

c) Exempt leave must be used in the calendar year for which it is granted and shall not be carried into the next calendar year.

d) Any unused exempt leave is not compensated on separation.

City of Toppenish

http://cityoftoppenish.us/human-resources/wp-content/uploads/9/2020/07/2020-Personnel-Policy-Manual.pdf

8.02 Vacation Accrual. Vacation leave is accrued starting on the employee's first day of employment.

1. First three (3) years (1-36 months) of continuous service: 8 hours per month;
2. Through fifth (5th) year (37-60 months) of continuous service: 10 hours per month;
3. Through ninth (9th) year (61-108 months) of continuous service: 12 hours per month;
4. Through fifteenth (15th) year (109-180 months) of continuous service: 13.3 hours per month; and
5. After completion of fifteenth (15th) year and beyond (181+ months) of continuous service: 16.67 hours per month.

Vacation leave for a regular part-time employee is accrued from their employment date at a prorated amount.

FLSA Exempt Personnel - FLSA exempt personnel accrue vacation leave at a rate of 13.3 hours per month from the first date of employment. Upon completion of 15 years (181+ months) of continuous service, vacation leave accrues at a rate of 16.67 hours per month.

3.08 Exempt Employee Administrative Leave. FLSA-exempt employees may be authorized administrative leave or time off with pay if unusual demands require excessive hours of work beyond the normal workweek. Exempt employees are not paid overtime or given compensatory time off. Requests for a full workday of administrative leave will be submitted in writing and cite the nature and extent of excessive hours worked. If administrative leave is requested, a completed Personnel Management Form (PM1) must be approved by the City Manager.

City of North Bonneville

http://mrsc.org/Corporate/media/MediaLibrary/SampleDocuments/PolicyProcedures/n67perspol.pdf

903 Executive Leave

Because exempt employees are not eligible for overtime or compensatory time, Managers can be granted up to ten (10) days of executive leave each calendar year as determined by the Mayor. Executive leave may be used for any reason. The Manager must schedule and receive approval for the use of executive leave from the Mayor. Executive leave must be used in the calendar year granted and shall not be carried into the next calendar year. Executive leave must be taken in full-day increments. The number of days of executive leave that an employee will earn shall be approved by the Mayor. The City reserves the right to reduce, eliminate, or increase executive leave at any time.

City of Sequim

http://mrsc.org/getmedia/a695e495-a3ab-4296-8250-c1a4da861bc8/s46perspol.pdf.aspx#page=3

Vacation accruals for Non-represented employees

For vacation accrual purposes, Non-represented employees are grouped into three categories (below) as provided in the Management Compensation Policy (see Chapter 6-D). Department director positions include those designated as such by the Human Resources Department. Length of service is defined as at the time of hire into the City of Sequim position and includes the number of years of work experience performed at the same level position, reclassification of the position, or a substantially similar level position.

	Effective 1-1-18:	Admin Support (Non-exempt, Exempt)	Manager 1-3 (Exempt)	Department Director (Exempt)
	Length of Service:	Annual Vacation	Annual Vacation	Annual Vacation
Level 1	Year 1	80 hours	120 hours	160 hours

Level 2	Years 2-5	120 hours	160 hours	200 hours
Level 3	Years 6-10	160 hours	180 hours	220 hours
Level	Years 11+	200 hours	220 hours	240 hours

City of Woodland

http://mrsc.org/getmedia/f07e76bf-2c34-49bd-82fd-bd25dfc13389/w62perspol.aspx

(f) Administrative Time. Management/Designated Exempt positions are eligible for up to 96 hours of "Administrative Leave" per year at the Mayor's (or person appointed by the Mayor) discretion. This is in recognition of the amount of additional time necessary to perform their tasks. There is no carryover of these hours from one year to the next, except December accrual which must be used prior to the following December. No payment for unused hours will be made if employee leaves the employer.

City of Woodinville

https://www.codepublishing.com/WA/Woodinville/ords/Ord695.pdf

2.5 Exempt Employee Leave

In addition to all other authorized leaves, the City Manager may grant up to 40 hours per year of paid Exempt Employee Leave to each exempt employee. Such grants of leave will be based upon extraordinary time, effort, and commitment of the employee in the performance of their job as determined in the sole discretion of the City Manager. The City Manager may grant between 0-40 hours per year to each qualifying exempt employee. The City will grant this leave in accordance with current Personnel Policy.

City of Sammamish

https://www.sammamish.us/media/55145/sammamish-employee-handbook-adopted-091118.pdf

8.4 Annual Management Leave

The City recognizes that exempt employees often put in hours that extend beyond the standard work week to meet the demands of their position. While some extra time is an expected component of these positions, the City wishes to provide a benefit in recognition of this service. Management leave is granted in recognition of the extraordinary work time required in overtime exempt positions but is not intended to be balanced hour for hour with extra time worked.

Exempt employees who were employed by the City in an exempt position for the entire previous calendar year, shall be granted 40 hours of management leave annually at the start of each calendar year. Management Leave shall be pro-rated for eligible employees who start mid-year i an exempt position. Management Leave shall be granted in addition to other earned leave benefits. Human Resources will maintain a list of positions that are eligible for Management Leave.

Management Leave must be used in the calendar year it was granted and cannot be carried forward from one calendar year to the next. No compensation for unused Management Leave shall be paid to an employee who leaves City service.

City of Mill Creek

https://www.codepublishing.com/WA/MillCreek/#!/MillCreekPolicies/MillCreekPolicies40001.html#40001

6.5 Exempt Leave. To acknowledge that exempt employees will regularly be required to work overtime hours without additional compensation, exempt leave is provided to FLSA exempt employees as a bank of 40 hours on January 1 of each year. These hours expire if unused on December 31 of each year.

City of Kenmore

6.8 EXECUTIVE LEAVE (REVISED JANUARY 27, 2011)

6.8.1 In recognition of exemplary service and the many hours worked by exempt employees beyond the standard workweek, the City desires to grant up to 10 days (80 hours) of Executive Leave each calendar year. Executive Leave will be prorated for exempt part time employees and for eligible new employees with accruals beginning the first day of the month following date of hire. The City Manager, the Assistant City Manager, the Director of Community Development, the Finance Director, the City Engineer, the City Clerk, the Public Works Operations Manager, and the PIO/Special Events Coordinator are granted ten days (80 hours) of Executive Leave accrued at the rate of 3.08 hours per pay period. The Senior Planner, the Director of Land Development, the Associate Planner, the Senior Engineer, and the Civil Engineer are granted five days (40 hours) of Executive Leave accrued at the rate of 1.54 hours per pay period.

6.8.2 Executive Leave is granted in recognition of exemplary and extraordinary service and is intended to provide for occasional paid days off for recuperation without reducing an employee's accrued vacation. It must be taken in increments of no less than four hours at a time.

6.8.3 The employee must submit an Executive Leave request to their supervisor and receive approval, prior to taking such leave. Requests may be denied due to city or department operational needs.

6.8.4 Executive Leave may not be used to substitute for sick leave unless all sick leave has been exhausted.

City of Lake Forest Park

Policy:

Administrative Leave provides six additional days of leave time each year for full-time exempt employees. Part time exempt employees will have this leave prorated. This time is to be used for vacation, sick or other incidental leave time. The leave is granted in full on January 1, and must be used within the 12-month calendar year. Employees who join the City or become exempt level employees after January 1 but on or before July 1 will be granted 3 days on July 1; employees who join the City or become exempt level employees after July 1 will not be granted Administrative Leave until the following January 1. Administrative Leave that is not used within the calendar year will not roll over to the next, and it is not paid at time of termination.

Administrative Leave does not count towards or against other administrative type leave where the City is closed due to emergency situations (inclement weather, power outages, etc.).

Procedure:

- On January 1 or July 1, exempt employees shall have their Administrative Leave Bank funded by either 6 or 3 days (depending on hire date).
- Employees using Administrative Leave must notify their manager prior to using the leave and note the Administrative Leave used on their timecard.
- Administrative Leave can be used for any time needed away from work, and it may be used in conjunction with other leave time (i.e. vacation, sick or holiday).

- The City at its discretion may deny a request for Administrative Leave based upon business necessity and/or if such request is inconsistent with the operational needs of the City.

City of North Bend

The City provides executive leave to its exempt staff. Below is the section of our Personnel Manual that discusses it. Leave hours granted vary from between 36 to 90 based on the position and frequency of high-work hour weeks, with only Directors receiving 90 hours.

2.500 – EXEMPT EMPLOYEES AND EXECUTIVE LEAVE

Exempt employees are compensated to complete a scope of responsibilities. Hence, exempt employees are not eligible for overtime pay. At times, exempt employees may need to work more than forty hours per week to adequately complete their job responsibilities.

Exempt employees will coordinate with the City Administrator or department director in taking executive leave time. Executive leave time should be used for short-term absences from work during times mutually agreed to by the employee and the supervisor, with the impact on City operations as a primary consideration. Executive leave should not be used as a substitute for extended vacation time. Absences in excess of three days shall be deemed as vacation time.

City of Snoqualmie

Hour for hour comp time accrual for exempt employees, with a maximum of 40 hours at any given time, and 24 hours maximum carry over at the end of the year.

City of Snohomish

Only the City Administrator receives admin leave 40hrs per year and its included in his contract. The rest follow the same Annual Leave policy. We don't have sick leave it's just one bank of leave for exempt and non-exempt employees

City of Black Diamond

Waiting for response – emailed and left message

City of Carnation

Waiting for response – emailed and left message